VANCOUVER PUBLIC SCHOOLS
VPS
Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted online at www.vansd.org

- Procedure 3205 – REPEAL Sexual Harassment of Student's Prohibited
    - Deleted on January 6, 2025
- Procedure 3205.1 – Grievance Procedure: Sex Discrimination and Sex-Based Harassment of Students Prohibited
    - Posted on January 6, 2025
- Procedure 3205.2 – Implementation Procedure – Sex Discrimination and Sex-Based Harassment of Students Prohibited
    - Posted on January 6, 2025
- Procedure 3206 – Pregnant and Parenting Students
    - Posted on January 6, 2025
- Procedure 5011 – REPEAL – Sexual Harassment of District Staff Prohibited
    - Deleted on January 6, 2025
- Procedure 5011 – Sex Discrimination and Sex-Based Harassment of Staff Prohibited
    - Posted on January 6, 2025
- Procedure 5012 – Parental, Family, or Marital Status, and Pregnancy or Related Conditions of Staff
    - Posted on January 6, 2025

(DRAFT 10-03-24)

REPEAL Procedure – Sexual Harassment of Students Prohibited

~~The procedure is intended to set forth the requirements of Policy 3205, including the process for a prompt, thorough, and equitable investigation of allegations of sexual harassment and the need to take appropriate steps to resolve such situations. If sexual harassment is found to have created a hostile environment, staff must take immediate action to eliminate the harassment, prevent its reoccurrence, and address its effects.~~

~~This procedure applies to sexual harassment (including sexual violence) targeted at students carried out by other students, employees or third parties involved in school district activities. Because students can experience the continuing effects of off-campus harassment in the educational setting, the district will consider the effects of off-campus conduct when evaluating whether there is a hostile environment on campus. The district has jurisdiction over these complaints pursuant to Title IX of the Education Amendments of 1972, Chapter 28A.640, RCW and Chapter 392-190 WAC.~~

~~I. Notice~~

~~A. Information about the district's sexual harassment policy will be easily understandable and conspicuously posted throughout each school building, be reproduced in each student, staff, volunteer and parent handbook.~~

~~B. In addition to the posting and reproduction of this procedure and Policy 3205, the district will provide annual notice to employees that complaints pursuant to this procedure may be filed at:~~

~~Vancouver Public Schools~~
~~Central Office~~
~~2901 Falk Rd.~~
~~Vancouver, WA 98661~~

~~II. Title IX Coordinator, Investigator, and Decision-maker~~

~~A. The district will designate and authorize at least one employee to act as "Title IX Coordinator" to coordinate the district's state and federal sex discrimination and sexual harassment regulation compliance efforts. The decision-maker who reaches the final determination of responsibility for alleged Title IX sexual harassment will be the Superintendent or designee. The decision-maker cannot be the same person who serves as the Title IX Coordinator or the investigator of the Title IX complaint.~~

~~B. Any individual designated as Title IX Coordinator, an investigator, or decision-maker, and any person who facilitates an informal resolution process must not have a conflict of interest or bias for or against complainants or respondents in general or individually, and must receive training on the definition of sexual harassment under Title IX, the scope of the district's education program or activity, how to conduct an investigation and grievance process and informal resolution process, and how to serve impartially. The decision-maker must also receive training on how to create an investigative report that fairly summarizes relevant evidence.~~

~~C. Any training materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process must not rely on sex stereotypes and must promote impartial investigations and adjudications of complaints. The district shall maintain for a period of seven years records of any informal resolution and the result, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy; and all materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process, and make such materials available on the district's website or make these materials available upon request for inspection by members of the public.~~

~~III. Staff Responsibilities~~

~~A. The district must act in accordance with this policy and procedure when any district employee knows, or in the exercise of reasonable care should know, about possible sexual harassment.~~

~~B. In the event of an alleged sexual assault, the school principal will immediately inform: 1) the Title IX coordinator so that the district can appropriately respond to the incident consistent with its own grievance procedures; and 2) law enforcement.~~

~~C. The principal will notify the targeted student(s) and their parents/guardians of their right to file a criminal complaint and a sexual harassment complaint simultaneously.~~

~~IV. Confidentiality~~

~~A. If a complainant requests that their name not be revealed to the alleged perpetrator or asks that the district not investigate or seek action against the alleged perpetrator, the request will be forwarded to the school principal, or the appropriate executive director, if the principal is the subject of the complaint, for evaluation.~~

~~B. The school principal or the appropriate executive director should inform the complainant that honoring the request may limit its ability to respond fully to the incident, including pursuing disciplinary action against the alleged perpetrator.~~

~~C. If the complainant still requests that their name not be disclosed to the alleged perpetrator or that the district not investigate or seek action against the alleged perpetrator, the district will need to determine whether or not it can honor such a request while still providing a safe and nondiscriminatory environment for all students, staff and other third parties engaging in district activities, including the person who reported the sexual harassment. Although a complainant's request to have their name withheld may limit the district's ability to respond fully to an individual allegation of sexual harassment, the district will use other appropriate means available to address the sexual harassment.~~

~~V. Retaliation~~

~~Title IX prohibits retaliation against any individual who files a complaint under these laws or participates in a complaint investigation. When an informal or formal complaint of sexual harassment is made, the district will take steps to stop further harassment and prevent any retaliation against the person who made the complaint, was the subject of the harassment, or against those who provided information as a witness. The district will investigate all allegations of retaliation and take actions against those found to have retaliated.~~

~~VI. Title IX Complaint Process~~

~~A. Sexual Harassment Complaint under Title IX~~

~~1. The Title IX Coordinator will assess whether a formal complaint of sexual harassment meets the criteria for a Title IX complaint. If so, the district will implement investigation and response procedures under state law, as well as the following additional procedures as required by Title IX regulations.~~

~~2. Under Title IX, the term "sexual harassment" means:~~

~~a) An employee of the district conditioning the provision of an aid, benefit, or service on an individual's participation in unwelcome sexual conduct;~~

~~b) Conduct that creates a "hostile environment," meaning unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the education program or activity; or~~

c) "Sexual assault," as defined in 20 U.S.C. 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. 12291(a)(10), "domestic violence" as defined in 34 U.S.C. 12291(a)(8), or "stalking" as defined in 34 U.S.C. 12291(a)(30).

B. Supportive Measures under Title IX

Once any district employee knows, or in the exercise of reasonable care should know, about possible sexual harassment, the Title IX Coordinator must promptly contact the complainant and offer to provide the complainant with supportive measures and explain the process for filing a formal complaint. *See "interim measures" required under state law below for a similar requirement.* Supportive measures must be offered to the complainant, before or after the filing of a formal complaint, or where no formal complaint has been filed. Supportive measures may also be provided to the respondent. Supportive measures are non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or respondent. Supportive measures should be designed to restore or preserve access to the District's education program or activity without unreasonably burdening the other party. Supportive measures may include, but are not limited to, counseling, extensions of deadlines or other course-related adjustments, modifications of work or class schedules, campus escort services, mutual restrictions on contact between the parties, leaves of absence, increased security and monitoring of certain areas of the campus, and other similar measures.

C. When Title IX Procedures are Required

1. The district will implement the Title IX procedures set forth in this policy and procedure in response to a sexual harassment complaint when the alleged conduct constitutes sexual harassment as defined by Title IX regulations, and:

   a) The written complaint is filed by the complainant of the alleged sexual harassment, by the complainant's legal guardian, or by the Title IX Coordinator;

   b) The complaint requests that the district investigate the allegation(s) of sexual harassment, as defined under Title IX regulations;

   c) The complaint is against a named respondent who, at the time of the alleged harassment, was a district student, district employee, or third party involved in district activities and under the control of the district;

   d) The alleged sexually harassing conduct occurred in the United States; and

   e) The complainant is participating in or attempting to participate in the district's educational program or activity at the time.

2. If the formal complaint is determined to meet the criteria for a Title IX complaint, the district must respond promptly in a manner that is not deliberately indifferent. "Deliberately indifferent" means that the district's response is clearly unreasonable in light of the known circumstances. The district's investigation and determination regarding responsibility shall be completed within 60 days unless the parties agree to a different timeline or the superintendent or designee determines there is good cause for an extension of the time limit. The district will respect the complainant's wishes with respect to whether the district investigates unless the Title IX Coordinator, after having considered the complainant's wishes, decides that it would be clearly unreasonable not to investigate the allegations.

3. The district will acknowledge receipt of the formal complaint by providing the following written notice to the respondent and complainant:

   a) Notice of the complaint, investigation, and grievance processes;

   b) Notice of the allegations of sexual harassment with sufficient time for the parties to prepare a response before any initial interview and with sufficient detail. Such sufficient detail includes the

~~identities of the parties involved in the incident if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident if known;~~

~~c) Notice that the parties may have an advisor of their choice who may be an attorney or non-attorney, and who may inspect and review evidence of the alleged sexual harassment;~~

~~d) Notice that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility for alleged sexual harassment is made at the conclusion of the grievance process; and~~

~~e) Notice of any provision in student conduct policies and procedures that prohibits false statements or submitting false information.~~

~~D. Title IX Informal Resolution Process, *See state Informal Complaint Process, below*~~

~~1. At any time prior to a determination regarding responsibility for alleged sexual harassment as defined by Title IX regulations, the district may permit a complainant to waive the formal resolution process in favor of an informal resolution process not involving a full investigation and determination, provided that the district obtains the parties' voluntary, written consent, the district does not use the informal resolution process for resolving allegations that a district employee sexually harassed a student, and the district provides the parties with written notice disclosing the allegations, the requirements for the informal resolution process, and the circumstances in which the parties would be precluded from continuing with a formal resolution process for the same allegations.~~

~~2. A party has the right to withdraw from the informal resolution process and resume the formal Title IX grievance process at any time prior to agreeing to a resolution. The district may not require the waiver of the right to an investigation and adjudication of formal complaints of sexual harassment under Title IX as a condition of enrollment, employment, or enjoyment of any other right, nor may the district require the parties to participate in an informal resolution process.~~

~~E. Title IX Formal Resolution Process~~

~~1. The district must investigate allegations contained in a formal complaint. If the conduct alleged would not constitute sexual harassment under Title IX regulations even if proved, did not occur in the district's education program or activity, or did not occur against a person in the United States, then the recipient must dismiss the formal complaint under Title IX. Such dismissal does not preclude action under another provision of district policy or procedure or under sexual harassment investigation procedures as required by state law.~~

~~2. The district's investigation of a Title IX complaint must:~~

~~a) Ensure that the district bears the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility for the alleged sexual harassment. The district may not access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting or assisting in their professional capacity and made and maintained in connection with the provision of treatment to the party unless the district obtains the party's voluntary, written consent to do so.~~

~~b) Provide an equal opportunity for the parties to present witnesses and other inculpatory and exculpatory evidence;~~

~~c) Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;~~

~~d) Provide the parties with the same opportunities to have others present during any grievance proceeding; including the opportunity to be accompanied to any related meeting or proceeding~~

~~by the advisor of their choice, who may be an attorney or non-attorney. The district will apply any restrictions regarding the extent to which an advisor may participate equally to both parties;~~

~~e) Provide to a party whose participation is invited or expected written notice of the date, time, location, participants, and purpose of all interviews or other meetings, with sufficient time for the parties to prepare to participate;~~

~~f) Prior to the completion of an investigative report, provide an equal opportunity for the parties to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation. This includes evidence that the district does not intend to rely on in reaching a determination of responsibility for the alleged sexual harassment, regardless of the source of the evidence. The parties will have at least ten (10) days to submit a written response for the investigator to consider prior to completion of the investigative report;~~

~~g) At least ten (10) days prior to a determination regarding responsibility, create an investigative report that fairly summarizes relevant evidence, and send the investigative report in an electronic or hard-copy format to each party and each party's advisor for their review and written response;~~

~~h) After transmitting the investigative report to the parties, but before reaching a final determination regarding responsibility, the decision maker must give each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant unless they are offered to prove that someone other than the respondent committed the conduct alleged by the complainant or unless they concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision-maker must explain to the party proposing the questions any decision to exclude a question as not relevant.~~

~~3. At the conclusion of the investigation, the decision-maker (superintendent or designee) must issue a written determination of responsibility regarding the alleged sexual harassment, applying a preponderance of the evidence standard. One or more remedies must be provided any time a respondent is found responsible. Violation of the district's Title IX policy may result in disciplinary sanction up to and including expulsion.~~

~~4. The superintendent's written determination must be issued to the parties simultaneously and must include the following:~~

~~a) Identification of the allegations potentially constituting sexual harassment under Title IX regulations;~~

~~b) A description of the procedural steps taken from the time of the district's receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, methods used to gather other evidence, and other meetings held with the parties;~~

~~c) Findings of fact supporting the determination;~~

~~d) Conclusions regarding the application of the district's code of conduct policies to the facts;~~

~~e) A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions imposed on the respondent, and whether remedies designed to restore or preserve equal access to the education program or activity will~~

~~be provided to the complainant; and~~

~~f) The procedures and bases for appealing the superintendent's determination.~~

~~F. Title IX Investigation Appeals~~

~~1. Both parties may appeal from the superintendent's determination regarding responsibility or from the district's dismissal of any allegations contained in a formal Title IX complaint.~~

~~2. A party may appeal the determination regarding responsibility on the following bases:~~

~~a) Procedural irregularity affecting the outcome of the matter;~~

~~b) New evidence that was not reasonably available at the time the determination regarding responsibility was made that could affect the outcome of the matter; or~~

~~c) The Title IX coordinator, investigator(s), or decision-maker(s) had a conflict of interest or bias for or against complainants or respondents generally or individually that affected the outcome of the matter.~~

~~3. Regarding appeal, the district must:~~

~~a) Provide written notice to the other party when an appeal is filed;~~

~~b) Implement appeal procedures equally for both parties;~~

~~c) Ensure that the decision-maker for the appeal is not the same decision-maker who reached the determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator;~~

~~d) Ensure that the decision-maker for the appeal has received the training required by this procedure.~~

~~e) Provide both parties with a reasonable, equal opportunity to submit a written statement in support of or challenging the outcome of the initial determination; and~~

~~f) Issue a written decision describing the result of the appeal and the rationale for the result.~~

~~G. Emergency Removals for alleged sexual harassment under Title IX~~

~~These additional Title IX sexual harassment procedures do not preclude the district from removing a student from school on an emergency basis consistent with Policy and Procedure 3241 – Student Discipline and state law.~~

~~H. Title IX Investigation Recordkeeping~~

~~1. The district will maintain records of each Title IX sexual harassment investigation, including any determination regarding responsibility and, if any exists, any audio or audiovisual recording or transcript; any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant; and any appeal from the result of a determination regarding responsibility, for a period of seven years, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy.~~

~~2. The district must maintain records of any actions, including supportive measures, taken in response to a report or formal complaint of sexual harassment under Title IX, for a period of seven years, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy.~~

~~VII. Informal Complaint Process – State Requirements~~

~~A. Anyone may use informal procedures to report and resolve complaints of sexual harassment. Informal reports may be made to any staff member. Staff will always notify complainants of their right to file a formal complaint and the process for same. Staff will also direct potential complainants to the school principal or the appropriate executive director, if the principal is the subject of the complaint. Additionally, staff will also inform an appropriate supervisor or professional staff member when they receive complaints of sexual harassment, especially when the complaint is beyond their training to resolve or alleges serious misconduct.~~

~~B. During the course of the informal complaint process, the district will take prompt and effective steps reasonably calculated to end any harassment and to correct any discriminatory effects on the complainant. If an investigation is needed to determine what occurred, the district will take interim measures to protect the complainant before the final outcome of the district's investigation (e.g., allowing the complainant to change academic or extracurricular activities or break times to avoid contact with the alleged perpetrator).~~

~~C. Informal remedies may include:~~

~~1. An opportunity for the complainant to explain to the alleged harasser that their conduct is unwelcome, offensive or inappropriate, either in writing or face-to-face;~~

~~2. A statement from a staff member to the alleged harasser that the alleged conduct is not appropriate and could lead to discipline if proven or repeated;~~

~~3. A general public statement from an administrator in a building reviewing the district sexual harassment policy without identifying the complainant;~~

~~4. Developing a safety plan;~~

~~5. Separating students; or~~

~~6. Providing staff and/or student training~~

~~D. Informal complaints may become formal complaints at the request of the complainant, parent/guardian, or because the district believes the complaint needs to be more thoroughly investigated.~~

~~E. The district will inform the complainant and their parent/guardian how to report any subsequent problems. Additionally, the district will conduct follow-up inquiries to see if there have been any new incidents or instances of retaliation, and to promptly respond and appropriately address continuing or new problems. Follow-up inquiries will follow a timeline agreed to by the district and complainant.~~

~~VIII. Formal Complaint Process – State Requirements~~

~~A. Level One – Complaint to District~~

~~1. Anyone may initiate a formal complaint of sexual harassment, even if the informal complaint process is being utilized. At any level in the formal complaint process under state law, the district will take interim measures to protect the complainant before the final outcome of the district's investigation. The same allegations may qualify as a sexual harassment allegation under federal Title IX regulations, which require actions in addition to the process for investigating sexual harassment allegations under state law.~~

~~2. The following process will be followed:~~

~~a) All formal complaints will be in writing and will set forth the specific acts, conditions or circumstances alleged to have occurred and to constitute sexual harassment. The Title IX coordinator may draft the complaint based on the report of the complainant for the complainant~~

~~to review and approve. The superintendent or Title IX coordinator may also conclude that the district needs to conduct an investigation based on information in their possession, regardless of the complainant's interest in filing a formal complaint.~~

~~b) The time period for filing a complaint is one year from the date of the occurrence that is the subject matter of the complaint. However, a complaint filing deadline may not be imposed if the complainant was prevented from filing due to: 1) Specific misrepresentations by the district that it had resolved the problem forming the basis of the complaint; or 2) Withholding of information that the district was required to provide under WAC 392-190-065 or WAC 392-190-005.~~

~~c) Complaints may be submitted by mail, fax, email or hand delivery to the district Title IX coordinator or associate superintendent of human resources at 2901 Falk Rd., Vancouver, Washington, 98661, 360-313-1200. Any district employee who receives a complaint that meets these criteria will promptly notify the coordinator.~~

~~3. Investigation and Response~~

~~a) The Title IX coordinator will receive and investigate all formal, written complaints of sexual harassment or information in the coordinator's possession that they believe require further investigation. The coordinator will delegate their authority to participate in this process if such action is necessary to avoid any potential conflicts of interest. Upon receipt of a complaint, the coordinator will provide the complainant a copy of this procedure.~~

~~b) Investigations will be carried out in a manner that is adequate in scope, reliable and impartial. During the investigation process, the complainant and accused party or parties, if the complainant has identified an accused harasser(s), will have an equal opportunity to present witnesses and relevant evidence. Complainants and witnesses may have a trusted adult with them during any district-initiated investigatory activities. The school district and complainant may also agree to resolve the complaint in lieu of an investigation. When the investigation is completed, the coordinator will compile a full written report of the complaint and the results of the investigation.~~

~~4. Superintendent Response~~

~~a) The superintendent or designee will respond in writing to the complainant and the alleged perpetrator within thirty (30) calendar days of receipt of the complaint, unless otherwise agreed to by the complainant or if exceptional circumstances related to the complaint require an extension of the time limit. In the event an extension is needed, the district will notify the complainant in writing of the reason for the extension and the anticipated response date. At the time the district responds to the complainant, the district must send a copy of the response to the office of the superintendent of public instruction.~~

~~b) The response of the superintendent or designee will include: 1) a summary of the results of the investigation; 2) a statement as to whether a preponderance of the evidence establishes that the complainant was sexually harassed; 3) if sexual harassment is found to have occurred, the corrective measures the district deems necessary, including assurance that the district will take steps to prevent recurrence and remedy its effects on the complainant and others, if appropriate (e.g., sources of counseling, advocacy and academic support); 4) notice of the complainant's right to appeal to the school board and the necessary filing information; and 5) and notice to the perpetrator(s) of potential sanctions (e.g., discipline).~~

~~c) The superintendent's or designee's response will be provided in a language the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964. If the complaint alleges discriminatory harassment by a named party or parties, the coordinator will provide the accused party or parties with notice of the outcome of the investigation and notice of their right to appeal~~

~~any discipline or corrective action imposed by the district.~~

~~d) Any corrective measures deemed necessary will be instituted as quickly as possible, but in no event more than thirty (30) days after the superintendent's mailing of a written response, unless the accused is appealing the imposition of discipline and the district is barred by due process considerations or a lawful order from imposing the discipline until the appeal process is concluded. Staff may also pursue complaints through the appropriate collective bargaining agreement process or anti-discrimination policy.~~

~~e) The district will inform the complainant and their parent/guardian how to report any subsequent problems. Additionally, the district will conduct follow-up inquiries to see if there have been any new incidents or instances of retaliation, and to promptly respond and appropriately address continuing or new problems. Follow-up inquiries will follow a timeline agreed to by the district and complainant.~~

~~B. Level Two – Appeal to Appropriate Decision Maker~~

~~1. Notice of Appeal and Hearing~~

~~a) If a complainant disagrees with the superintendent's or designee's written decision, the complainant may appeal the decision, by filing a written notice of appeal with the secretary of the board within ten (10) calendar days following the date upon which the complainant received the response.~~

~~b) The board will ensure that a hearing commences by the twentieth (20th) calendar day following the filing of the written notice of appeal, unless otherwise agreed to by the complainant and the superintendent or for good cause.~~

~~c) Both parties will be allowed to present such witnesses and testimony as the board deems relevant and material.~~

~~2. Decision on Appeal~~

~~a) Unless otherwise agreed to by the complainant, the decision maker on appeal will render a written decision within thirty (30) calendar days following the filing of the notice of appeal and provide the complainant with a copy of the decision.~~

~~b) The decision will be provided in a language that the complainant can understand which may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act.~~

~~c) The decision will include notice of the complainant's right to appeal to the Superintendent of Public Instruction and will identify where and to whom the appeal must be filed. The district will send a copy of the appeal decision to the Office of the Superintendent of Public Instruction.~~

~~C. Level Three – Complaint to the Superintendent of Public Instruction~~

~~1. If a complainant disagrees with the decision of the board of directors, or if the district fails to comply with this procedure, the complainant may file a complaint with the Superintendent of Public Instruction.~~

~~2. A complaint must be received by the Superintendent of Public Instruction on or before the twentieth (20) calendar day following the date upon which the complainant received written notice of the board of directors' decision, unless the Superintendent of Public Instruction grants an extension for good cause. Complaints may be submitted by mail, fax, email, or hand delivery.~~

~~3. A complaint must be in writing and include: 1) a description of the specific acts, conditions or~~

~~circumstances alleged to violate applicable anti-sexual harassment laws; 2) the name and contact information, including address, of the complainant; 3) the name and address of the district subject to the complaint; 4) a copy of the district's complaint and appeal decision, if any; and 5) a proposed resolution of the complaint or relief requested. If the allegations regard a specific student, the complaint must also include the name and address of the student, or in the case of a homeless child or youth, contact information.~~

~~4. Investigation, Determination and Corrective Action~~

~~a) Upon receipt of a complaint, the Office of the Superintendent of Public Instruction may initiate an investigation, which may include conducting an independent on-site review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal to the superintendent or board.~~

~~b) Following the investigation, OSPI will make an independent determination as to whether the district has failed to comply with RCW 28A.642.010 or Chapter 392-190, WAC and will issue a written decision to the complainant and the district that addresses each allegation in the complaint and any other noncompliance issues it has identified. The written decision will include corrective actions deemed necessary to correct noncompliance and documentation the district must provide to demonstrate that corrective action has been completed.~~

~~c) All corrective actions must be completed within the timelines established by OSPI in the written decision unless OSPI grants an extension. If timely compliance is not achieved, OSPI may take action including but not limited to referring the district to appropriate state or federal agencies empowered to order compliance.~~

~~d) A complaint may be resolved at any time when, before the completion of the investigation, the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.~~

~~D. Level Four – Administrative Hearing~~

~~A complainant or school district that desires to appeal the written decision of the Office of the Superintendent of Public Instruction may file a written notice of appeal with OSPI within thirty (30) calendar days following the date of receipt of that office's written decision. OSPI will conduct a formal administrative hearing in conformance with the Administrative Procedures Act, Chapter 34.05, RCW.~~

~~IX. Mediation~~

~~A. At any time during the complaint procedure set forth in WAC 392-190-065 through 392-190-075, a district may, at its own expense, offer mediation. The complainant and the district may agree to extend the complaint process deadlines in order to pursue mediation.~~

~~B. The purpose of mediation is to provide both the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary and requires the mutual agreement of both parties. It may be terminated by either party at any time during the mediation process. It may not be used to deny or delay a complainant's right to utilize the complaint procedures.~~

~~C. Mediation must be conducted by a qualified and impartial mediator who may not: 1) be an employee of any school district, public charter school, or other public or private agency that is providing education related services to a student who is the subject of the complaint being mediated; or 2) have a personal or professional conflict of interest. A mediator is not considered an employee of the district or charter school or other public or private agency solely because the individual serves as a mediator.~~

~~D. If the parties reach agreement through mediation, they may execute a legally binding agreement that sets forth the resolution and states that all discussions that occurred during the course of mediation will remain~~

~~confidential and may not be used as evidence in any subsequent complaint, due process hearing or civil proceeding. The agreement must be signed by the complainant and a district representative who has authority to bind the district.~~

~~X. Training and Orientation~~

~~A. All district orientation sessions for staff, students and regular volunteers will introduce the elements of this policy. Staff will be provided information on recognizing and preventing sexual harassment. Staff will be fully informed of the formal and informal complaint processes and their roles and responsibilities under the policy and procedure.~~

~~B. Certificated staff will be reminded of their legal responsibility to report suspected child abuse, and how that responsibility may be implicated by some allegations of sexual harassment. Regular volunteers will get the portions of this component of orientation relevant to their rights and responsibilities.~~

~~C. Students will be provided with age appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies and rules at student orientation sessions and on other appropriate occasions, which may include parents.~~

~~D. As part of the information on the recognition and prevention of sexual harassment staff, volunteers, students and parents will be informed that sexual harassment may include, but is not limited to:~~

~~1. Demands for sexual favors in exchange for preferential treatment or something of value;~~

~~2. Stating or implying that a person will lose something if the individual does not submit to a sexual request;~~

~~3. Penalizing a person for refusing to submit to a sexual advance, or providing a benefit to someone who does;~~

~~4. Making unwelcome, offensive or inappropriate sexually suggestive remarks comments, gestures, or jokes; or remarks of a sexual nature about a person's appearance, gender or conduct;~~

~~5. Using derogatory sexual terms for a person;~~

~~6. Standing too close, inappropriately touching, cornering or stalking a person; or~~

~~7. Displaying offensive or inappropriate sexual illustrations on school property.~~

~~XI. Policy and Procedure Review~~

~~As needed, the superintendent or designee will convene an ad hoc committee composed of representatives of certificated and classified staff, volunteers, students and parents to review the use and efficacy of this policy and procedure. The compliance officer will be included in the committee. Based on the review of the committee, the superintendent will prepare a report to the board including, if necessary, any recommended policy changes. The superintendent will consider adopting changes to this procedure if recommended by the committee.~~

~~**APPROVED:**~~

~~Kathy Everidge, Interim Superintendent~~ ~~Vancouver Public Schools~~	~~Date~~

(DRAFT 12-13-24)

NEW Sex Discrimination and Sex-Based Harassment of Students Prohibited – Grievance Procedure

This procedure sets forth the district's process for receiving, investigating, and resolving reports or complaints of sex discrimination. It is designed to provide for a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination is found to have occurred, the district will also take immediate action to eliminate the discrimination, prevent its reoccurrence, and remedy its effects.

For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
360-313-1000
Jeff.fish@vansd.org

I. General Definitions

A. "Complainant" means a student, employee, or other person who was participating or attempting to participate in a district education program or activity who is alleged to have been subjected to sex discrimination.

B. "Complaint" means an oral or written request to the district that can be objectively understood as a request to investigate and determine whether alleged sex discrimination occurred.

C. "Complaint Requestor" means a person who files a complaint on behalf of another student, employee, or other person who is alleged to have been subjected to sex discrimination.

D. "Party" or "Parties" means a complainant or respondent, and includes the parent(s)/guardian(s) of any minor student.

E. "Prohibited Conduct" means sex discrimination and sex-based harassment. Specific prohibited conduct is defined in Section VII below.

F. "Remedies" means appropriate measures provided to restore or preserve a complainant's equal access to the district's education program or activity.

G. "Respondent" means a person who is alleged to have violated the district's prohibition of sex discrimination and can be a student, employee, or third party.

H. "Student with a disability" means a student who is an individual with a disability as defined in Section 504 of the Rehabilitation Act of 1973 (Section 504) or as defined in the Individuals with Disabilities Education Act (IDEA).

I. "Written notice" means written or electronic notice in a language the party can understand, which may require language assistance for parties with limited English proficiency in accordance with Title VI of the Civil Rights Act.

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II. Responding to Notice or Report of Sex Discrimination

A. Upon receipt of notice, reports, or knowledge of alleged sex discrimination, including sex-based harassment, the district will take steps to address the information that is reported to the extent it is feasible to do so while maintaining the confidentiality of the affected student or employee.

B. The district is on notice and will take action when any employee knows, or in the exercise of reasonable care should know, about possible sex discrimination. This includes verbal or written reports made to any employee, including anonymous complaints.

C. Upon notice of possible sex discrimination, employees will notify the Title IX coordinator. Employees will also inform an appropriate supervisor or professional staff member when they receive complaints of sex-based harassment, especially when the complaint is beyond their training to resolve or alleges serious misconduct.

D. The district will make every effort to protect parties' privacy. However, in the event of an alleged sexual assault of a minor, the school principal will immediately inform law enforcement consistent with mandatory reporting requirements at RCW Chapter 26.44.

E. In the event of an alleged sexual assault, the school principal will also immediately notify the student, parent or guardian, or employee of their right to file a criminal complaint with law enforcement and a sex-based harassment complaint with the district. With the consent of the student or employee, or when there is a legal requirement to do so, the principal may also help the student or employee contact law enforcement.

III. Supportive Measures, Notice of Applicable Policy and Procedure, and Other Considerations

A. Once the Title IX coordinator has been notified of possible sex discrimination, the Title IX coordinator or designee will promptly contact the affected student or employee to:

1. Discuss the availability of supportive measures and consider their wishes with respect to supportive measures;

2. Explain the district's procedure and resolution options, including the informal resolution process if appropriate; and

3. Provide a copy of the applicable district policy and procedure, including the district's grievance procedure.

B. Supportive Measures

1. Upon notice of allegations of sex discrimination, an administrator will offer and coordinate supportive measures as appropriate for the complainant and respondent.

2. At the time that supportive measures are offered, if a complaint has not been filed, the district will provide written notice that the complainant may file a complaint at any time. The administrator will work with a party to ensure that their wishes are considered with respect to any supportive measures.

3. If a complainant does not want to file a complaint or engage in informal resolution options, a reported concern may be resolved by offering supportive measures. The administrator will

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document any supportive measures and provide that information to the Title IX coordinator.

C. Providing Supportive Measures

1. Supportive measures are designed to protect the safety of the parties or the district's educational environment. They also provide support during the informal resolution process and grievance process. They are designed to restore or preserve access to the district's education program or activity. They are offered without fee or charge to the parties, and must not unreasonably burden either party.

2. Supportive measures cannot be imposed against a respondent for punitive or disciplinary reasons.

3. Supportive measures are available to both parties and may vary depending on what is reasonably available, but may include:

   a) A request that an administrator meet with the respondent (with or without the complainant) to discuss the concerning behavior, school policies, and expectations. The conversation must be non-disciplinary, non-punitive, and the respondent cannot be required to attend nor are they required to provide any information if they attend. If it takes place, the conversation will be documented;

   b) An opportunity for a complainant to meet with an administrator and the alleged harasser to explain that the conduct is unwelcome, offensive, or inappropriate. Such a meeting is voluntary and may be in writing or face-to-face;

   c) A general public statement from an administrator about the district's sex discrimination and sex-based harassment policy, without identifying the parties;

   d) Developing a safety plan;

   e) Mutual restrictions on contact between the parties;

   f) Increased security and monitoring of certain areas of the campus or school building;

   g) Providing employee and/or student training;

   h) Remote or alternative learning environments for students, or leaves of absence for employees;

   i) Access to the school counselor for students, or a referral to the Employee Assistance Program for employees;

   j) Modifications of work or class schedules;

   k) Extensions of deadlines; and

   l) Training and education programs related to sex discrimination or sex-based harassment.

4. If either party is a student with a disability, the Title IX coordinator may consult, as appropriate, with the special services department about how to comply with Section 504 or the IDEA in the implementation of supportive measures.

DRAFT

D. Privacy and Supportive Measures

The district will disclose supportive measures only to the student(s) or employee(s) to whom they apply and other people who need information to provide the supportive measures. The district will not disclose more information than necessary about the supportive measures. For example, the district may need to tell specific staff or the other party of a supportive measure to implement or document it, but the district may not need to disclose why the supportive measure is being provided.

1. The district may also disclose information about supportive measures:

   a) If a person with the legal right to consent to the disclosure provides written consent.

   b) When the information is disclosed to a parent, guardian, or other authorized legal representative.

   c) To comply with state or federal grant awards or other funding agreements.

   d) When required by law, including the Family Educational Rights and Privacy Act (FERPA), and those laws do not conflict with Title IX.

2. The district will not disclose information about supportive measures when prohibited by state law.

3. Additionally, as set forth in Policy and Procedure 3211 (Gender Inclusive Schools), information about a student's gender identity, legal name, or assigned sex at birth may constitute confidential information. To protect the safety and well-being of the student, school employees should not disclose a student's transgender or gender-expansive status to others, including other school personnel, other students, or the parents of other students, unless the school is (1) legally required to do so or (2) the student has authorized such disclosure.

E. Modification or Termination of Supportive Measures

1. A party may request the modification or termination of a supportive measure or challenge the denial of a requested supportive measure. Any such request must be submitted to the district's Title IX coordinator.

2. As appropriate, the district may modify or terminate supportive measures at the conclusion of an informal resolution or investigation process, or the district may continue them beyond that point.

F. Title IX Coordinator Determinations and Explanation of Applicable Policies

3. Who Can File A Complaint

   a) For complaints of sex-based harassment, the following people may file a complaint under this procedure:

      i) A complainant (a student, employee, or other person who was participating or attempting to participate in a district education program or activity who is alleged to have been subjected to sex discrimination);

DRAFT

ii) A parent, guardian, or other authorized legal representative of the complainant; or

iii) The Title IX coordinator.

b) For other forms of sex discrimination that are not sex-based harassment, the following people may file a complaint under this procedure:

i) A complainant;

ii) A parent, guardian, or other authorized legal representative of the complainant;

iii) The Title IX coordinator;

iv) Any student or employee; or

v) Any other person participating or attempting to participate in a district education program or activity at the time of the alleged sex discrimination.

c) Individuals who do not fit the definitions above may file complaints under other district policies, including but not limited to Policy 3210 (Nondiscrimination) and Policy 5010 (Nondiscrimination and Affirmative Action).

d) If a person who does not fit the definitions above attempts to file a complaint of sex-based harassment, the Title IX coordinator or designee will inform the person, in writing, that the district cannot proceed with an investigation. The notice will also state that the district will treat the complaint as a report of sex-based harassment and take steps, as necessary, to address the information to the extent it is feasible to do so while maintaining the confidentiality of the affected student or district employee.

G. Determining What Procedure Applies

1. The Title IX coordinator or designee will determine what procedure applies.

2. If the sex discrimination is alleged to have occurred prior to August 1, 2024, and is not ongoing, the procedure in effect at the time of the alleged conduct will apply.

3. If the alleged sex-based discrimination is alleged to have occurred on or after August 1, 2024, or is ongoing, this procedure will apply.

4. If more than one discriminatory event is alleged, or other types of discrimination are also alleged, the district may apply different policies to each event.

H. Other Considerations

1. Students with Disabilities

If either party is a student with a disability, the Title IX coordinator or designee will consult with the special services department to determine how to comply with Section 504 or IDEA requirements throughout this grievance process.

2. Discipline Prohibited Until Determination

DRAFT

a) A respondent who is alleged to have violated the district's prohibition of sex discrimination is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.

b) The district may not impose disciplinary sanctions or other actions that are not supportive measures against the respondent unless the district determines that the respondent was responsible for the sex discrimination at the conclusion of the grievance process.

I. Emergency Removals for Alleged Sex-Based Harassment under Title IX

The district may remove a student respondent from school on an emergency basis under the district's student discipline policy and procedure, provided the district:

1. Undertakes an individualized safety and risk analysis;

2. Determines that an imminent and serious threat to the health or safety of the complainant or any students, employees, or other persons justifies emergency removal; and

3. Provides the respondent with notice and an opportunity to challenge the emergency removal.

J. These emergency removal procedures do not modify any rights of a student with a disability under the IDEA, Section 504, or the Americans with Disabilities Act.

K. The district may place a respondent employee on administrative leave during the grievance process. Such leave does not modify any rights under Section 504 or the Americans with Disabilities Act. The district will follow the terms of any applicable collective bargaining agreement.

IV. Informal Resolution Procedure

A. The parties may elect to participate in an informal resolution process with a district designee trained on impartiality and this informal resolution process. The district cannot require the parties to participate in an informal resolution process or require that any person waive the right to the formal resolution process as a condition of enrollment, employment, or the enjoyment of any other right.

B. The purpose of informal resolution is to provide the parties an opportunity to resolve the allegations and reach a mutually acceptable resolution without an investigation and determination of responsibility.

C. It is not necessary to pursue informal resolution before filing a complaint and requesting an investigation.

D. Either party may request informal resolution at any time, including after a complaint has been filed but before a complaint determination is issued.

E. The informal resolution process is at the discretion of the district's Title IX coordinator or designee. However, informal resolution is not permitted for resolving allegations that an employee engaged in sex-based harassment of a student.

F. The informal resolution process requires the parties' voluntary, written consent. Before beginning

DRAFT

the informal resolution process, the parties must receive written notice that explains:

1. The allegations;

2. The requirements for the process;

3. The right to withdraw from the informal process and to proceed with the grievance process any time prior to reaching agreement;

4. If a resolution agreement is reached, the parties are prevented from proceeding with the grievance process;

5. Potential terms that can be requested or offered include but are not limited to restrictions on contact or participation in programs, activities, and attendance at specific events;

6. Notice that any agreement is only binding on the parties; and

7. That the parties may agree to keep any statements, notes, or evidence from the informal resolution process confidential, except that certain information may be disclosed as necessary or as required by law, including any written resolution agreement signed by the parties, any threat of violence or plans to commit or conceal a crime, and any acts subject to mandatory reporting.

G. Respondent's Acceptance of Responsibility

1. The respondent may accept responsibility for any or all of the allegations at any point during the involuntary resolution process. If the respondent indicates an intent to accept responsibility, the ongoing investigation process will be paused and the Title IX coordinator or designee will determine whether informal resolution is an option.

2. If informal resolution is an option, an informal resolution facilitator will determine whether all parties and the district are able to agree, in writing, on responsibility, restrictions, sanctions, restorative measures, and remedies. An informal resolution is not subject to appeal once all parties indicate their written agreement to all resolution terms.

3. When a signed, written resolution agreement is reached, the superintendent will accept a finding that the respondent is in violation of the district's policy and will accept the terms of the resolution agreement. The appropriate sanctions or responsive actions will be promptly implemented by the Title IX coordinator or designee and appropriate administrators to effectively stop the discrimination or harassment, prevent its recurrence, and remedy its effects on the complainant and, as applicable, the school community.

4. When the parties or the district do not agree on all resolution terms, the parties can attempt informal resolution or proceed with a complaint.

H. Informal Resolution Between the Parties

1. The purpose of informal resolution is to provide the parties an opportunity to reach a mutually acceptable resolution without an agreed upon finding of responsibility or an investigation and determination of responsibility.

2. The parties have forty-five (45) calendar days to engage in the informal resolution process, unless there is a good cause for extension.

DRAFT

3. If a complaint was filed, the Title IX coordinator or designee has discretion to determine if an investigation will be paused, limited, or continued during the informal resolution process.

4. If the parties agree to a resolution, they may not initiate or resume a complaint under the grievance procedures concerning the same allegations.

5. If either party withdraws from the informal resolution process or the process has not concluded within forty-five (45) calendar days, the informal resolution facilitator or Title IX coordinator will end the informal resolution process.

6. When the informal resolution process ends without a resolution agreement between the parties:

   a) If no complaint was filed, the Title IX coordinator or designee will provide written notice to the parties and remind the complainant of the right to file a complaint; and

   b) If a complaint was filed, the Title IX coordinator or designee will provide written notice that the complaint, in whole or part, will be investigated.

I. Mediation with the District for Complaints of General Discrimination

1. If the complaint concerns a policy or practice of the district, the district may, at its own expense, offer mediation. The complainant and the district may agree to extend the complaint process deadlines to pursue mediation.

2. The purpose of mediation is to provide the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary. Either party may terminate mediation at any time during the mediation process. Mediation may not be used to deny or delay a complainant's right to utilize the complaint procedures.

3. Mediation will be conducted by a qualified and impartial mediator who may not:

   a) Be an employee of any school district; or

   b) Have a personal or professional conflict of interest.

4. If the parties reach an agreement through mediation, they may sign a binding agreement that outlines the resolution and states that all statements, notes, or evidence from mediation will remain confidential and may not be used as evidence in any subsequent complaint or proceeding. However, certain information may be disclosed as necessary or as required by law, including any written agreement signed by the parties, any threat of violence or plans to commit or conceal a crime, any acts subject to mandatory reporting, and other exceptions listed in RCW 7.07.050. The agreement must be signed by the complainant and a district representative who has the authority to bind the district.

V. Grievance or Complaint Procedure

A. Basic Requirements of the District's Sex Discrimination Grievance Procedures

1. The district will treat complainants and respondents equitably.

DRAFT

2. The district will presume that the respondent is not responsible for the alleged sex discrimination until a determination is made at the conclusion of its grievance procedures.

3. The district requires that any Title IX coordinator, investigator, or decisionmaker not have a conflict of interest or bias for or against complainants or respondents generally or with respect to an individual complainant or respondent. A decisionmaker may be the same person as the Title IX coordinator or investigator.

B. Extension of Timeframes

The district may allow for the reasonable extension of the grievance process timeframes when agreed to by the complainant or for good cause.

C. Privacy and Personally Identifiable Information

1. The district will take reasonable steps to protect the privacy of the parties and witnesses. These steps will not restrict the ability of the parties to:

   a) Obtain and present evidence, including by speaking to witnesses;

   b) Consulting with family members or confidential resources such as medical providers, therapists, sexual assault resource centers, or others; or

   c) Otherwise preparing for or participating in the grievance procedures.

2. The district will not disclose personally identifiable information obtained through this grievance procedure, except in the following circumstances:

   a) To carry out the purposes of the district's obligations under this procedure, including to investigate and take other actions to address conduct that reasonably may constitute sex discrimination;

   b) When the district has obtained prior written consent from a person with the legal right to consent to the disclosure;

   c) When the information is disclosed to a parent, guardian, or other authorized legal representative with the legal right to receive the information;

   d) As required by law or the terms and conditions of a state or federal award, including a grant award or other funding agreement; or

   e) To the extent such disclosures are required by law.

D. Prohibition of Retaliation

Retaliation by the district, a student, an employee, or any other person authorized to provide any aid, benefit, or service under the district's education program or activity is prohibited. Retaliation includes student-to-student retaliation.

E. Credibility Determinations

Credibility determinations will not be based on a person's status as a complainant, respondent, or witness.

DRAFT

G. Relevant Evidence

1. "Relevant" means related to the allegations of sex discrimination under investigation. Evidence is relevant when it may aid a decisionmaker in determining whether the alleged sex discrimination occurred.

2. The district will objectively evaluate all evidence that is relevant and not otherwise impermissible, including both inculpatory and exculpatory evidence.

H. Impermissible Evidence

The following types of evidence and questions are impermissible, regardless of whether they are relevant:

1. Evidence that is protected under a privilege recognized by federal or state law, unless the privilege has been voluntarily waived;

2. A party's or witness's records that are made or maintained by a physician, psychologist, or other recognized professional or paraprofessional in connection with the treatment of the party or witness, unless the district obtains that party's or witness's voluntary, written consent to use the records in the grievance procedures; and

3. Evidence that relates to the complainant's sexual interests or prior sexual conduct, unless evidence of prior sexual conduct is offered to prove that someone other than the respondent committed the alleged conduct or is evidence of prior sexual conduct with the respondent that is offered to prove consent to the alleged sex-based harassment. The fact of prior consensual sexual conduct does not by itself demonstrate or imply the complainant's consent to the alleged sex-based harassment or preclude a determination that sex-based harassment occurred.

I. Grievance or Complaint Process when a Complaint is Received

1. If the district receives a complaint under this procedure, the Title IX coordinator or designee will ensure the complaint is evaluated and, if appropriate, investigated.

2. If the Title IX coordinator or designee has a conflict of interest, they will delegate their authority to participate in this process.

3. Upon receipt of a complaint, if supportive measures have not already been offered, the Title IX coordinator or designee will offer supportive measures to both parties. If necessary, the Title IX coordinator or designee may gather additional information from the complainant to understand the parties involved, the conduct alleged, and the date and location of the alleged incident(s), if known.

J. Dismissal of a Complaint

1. The district may dismiss a complaint of sex discrimination if:

   a) The district is unable to identify the respondent after taking reasonable steps to do so;

   b) The respondent is not participating in the district's education program or activity and is not employed by the district;

DRAFT

c) The conduct alleged in the complaint would not constitute sex discrimination, even if proven. Before dismissing the complaint, the district will make reasonable efforts to clarify the allegations with the complainant;

d) The complainant provided voluntary, written notice that they want to withdraw any or all of the allegations in the complaint, the Title IX coordinator declines to open a complaint, and any allegations that were not withdrawn would not constitute sex discrimination even if proven; or

e) The complaint lacks sufficient detail to objectively understand what acts are alleged and when and where such acts allegedly occurred. Before dismissing the complaint, the district will provide the complainant with written notice of what information is needed and explain that the district may dismiss the complaint if the information is not received within ten (10) calendar days. Such a dismissal will not prevent the complainant from filing other complaints in the future.

f) Pursuant to the state complaint procedure, it has been more than one year since the occurrence that is the subject matter of the complaint, except that this time limit may not be imposed if the complainant was prevented from filing a complaint due to (i) a specific misrepresentations by the district that it had resolved the problem forming the basis of the complaint or (ii) the withholding of information by the district that was required to be provided under Chapter 392-190 WAC.

2. If a complaint is dismissed, the district will promptly notify the complainant of the following, in writing:

   a) The basis for the dismissal;

   b) That the dismissal may be appealed within ten (10) calendar days by submitting a written notice of appeal to the district's Title IX coordinator.

   c) That the dismissal may be appealed based on any of the following:

      i) A procedural irregularity that would change the outcome;

      ii) New evidence that was not reasonably available when the dismissal was made and that would change the outcome; or

      iii) The Title IX coordinator or decisionmaker had a conflict of interest or bias for or against either party that would change the outcome.

3. If the dismissal occurs after the respondent has been notified of the allegations, the district will also simultaneously notify the respondent of the dismissal and basis for dismissal.

4. When a complaint is dismissed, the district will, at a minimum:

   a) Offer supportive measures to the complainant as appropriate;

   b) Offer supportive measures to the respondent, as appropriate, if the respondent was notified of the allegations; and

   c) Take other prompt and effective steps to prevent sex discrimination within the district's

DRAFT

education program or activity.

5. Dismissal of the complaint does not preclude taking action under another district policy or procedure.

K. Dismissal Appeal Process

1. The district will notify the parties of any appeal, including notice of the allegations if not previously provided to the respondent. For any appeal, the district will:

   a) Implement appeal procedures equally for the parties;

   b) Provide a decisionmaker who has been trained on Title IX regulations and did not take part in any investigation or the dismissal of the complaint;

   c) Provide the parties a reasonable and equal opportunity to make a statement; and

   d) Notify the parties of the result of the appeal and the rationale for the result.

2. All parties will be allowed a reasonable and equal opportunity to present such information as the dismissal appeal decisionmaker deems relevant and material at a dismissal appeal hearing.

3. Unless otherwise agreed to by the parties, the dismissal appeal decisionmaker will issue a written decision within ten (10) calendar days following the dismissal appeal hearing. The decision will be provided in a language the parties can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act.

4. The dismissal appeal decisionmaker's decision is final.

L. Notice of Allegations:

1. The district will acknowledge receipt of the formal complaint by providing the following written notice to the parties:

   a) A copy of the district's sex discrimination complaint procedure and, if appropriate, an explanation of any informal resolution process available;

   b) Notice of the allegations of sex discrimination with sufficient information to allow the parties to respond, including the identities of the parties involved in the incident, the conduct alleged to constitute sex discrimination, and the date(s) and location(s) of the alleged incident(s), if known;

   c) A statement that the parties are entitled to an equal opportunity to receive an accurate description of the relevant evidence and, upon request, an equal opportunity to access the evidence;

   d) Notice that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the investigation process; and

   e) Notice of the district's prohibition of retaliation.

2. The district may consolidate complaints involving multiple respondents, complainants, or

DRAFT

incidents when the allegations arise out of the same facts or circumstances. However, the district will not consolidate complaints if it violates FERPA and the district has not obtained prior written consent from the parents or eligible students to the disclosure of their records. This determination will be made on a case-by-case basis.

3. If, in the course of an investigation, the district decides to investigate additional allegations of sex discrimination that are not included in the original notice, the district will notify the parties of the additional allegations.

L. Investigation:

1. The investigator must be trained, impartial, and without a conflict of interest or bias for or against either party.

2. Time for Investigation

   The district will conduct a prompt, thorough, and effective investigation. The district will seek to complete the investigation within twenty (20) calendar days of receiving the complaint. In the event an extension is needed, the district will provide written notice to the parties of the reason for the extension and the anticipated response date.

3. Investigation Requirements

   a) The Title IX coordinator will appoint an investigator. The investigator may be any properly trained staff member or administrator, including the Title IX coordinator, or an outside investigator.

   b) The investigation must:

      i) Provide a prompt and thorough investigation into the allegations;

      ii) Gather evidence sufficient to reach a determination regarding responsibility;

      iii) Provide an equal opportunity for the parties to present fact witnesses and other inculpatory and exculpatory evidence that is relevant and not otherwise impermissible;

      iv) Review all evidence gathered through the investigation and determine what evidence is relevant and what evidence is impermissible;

      v) Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;

      vi) Provide each party with an equal opportunity to access the evidence that is relevant and not otherwise impermissible; and

      vii) Provide the parties with the opportunity to be accompanied by a parent, guardian, legal representative, or other adult of their choice during any grievance proceeding.

4. The district's investigation may not include records that were made or maintained by a physician, psychologist, or other recognized professional or paraprofessional in connection with the provision of treatment to the party unless the district obtains the party’s voluntary,

DRAFT

written consent.

M. Witness' and Parties' Rights

1. Complainants, respondents, and witnesses cannot be required to participate in the investigation or resolution processes but are encouraged to cooperate with the district's investigation.

2. Staff (excluding a staff complainant and respondent) are required to cooperate with and participate in the district's investigation and resolution process, unless this requirement conflicts with an applicable collective bargaining agreement. Represented employees will be informed of their right to representation if discipline could result from information provided during an interview.

N. Review of Evidence Prior to Determination

1. At least ten (10) calendar days prior to a determination of responsibility, the district will provide the parties with a report that provides written notice of the following:

   a) A summary of any relevant and not otherwise impermissible evidence that is directly related to the allegations and was obtained as part of the investigation;

   b) The findings of the investigation;

   c) A statement that the report will be provided to the decisionmaker;

   d) A statement that the parties are being given an accurate description of the evidence and, upon request, have an equal opportunity to inspect and review all evidence that is relevant and not otherwise impermissible;

   e) A statement that the parties have ten (10) calendar days from receipt of the notice to review the description of the evidence, request to review the evidence, and submit a written response to the decisionmaker;

   f) A statement that both parties have an equal opportunity to ask specific, relevant questions about the evidence or identify areas in which the party believes further investigation is necessary; and

   g) A statement that questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant unless offered to prove that someone other than the respondent committed the conduct alleged or unless they concern specific incidents of the complainant's prior sexual behavior with the respondent and are offered to prove consent.

2. If the parties request to inspect and review the relevant evidence, the district will take reasonable steps to prevent unauthorized disclosure of information obtained through the grievance procedures.

3. Disclosures of information and evidence for an administrative proceedings or litigation related to the complaint are authorized. However, the district may redact information if it has not received voluntary, written consent to disclose information that is privileged or was made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional made in connection with the treatment of the party.

DRAFT

O. Level One – Superintendent's Decision

1. The investigator will make findings and recommendations to the superintendent or designee.

2. Prior to issuing a decision, the superintendent or designee will objectively review all evidence gathered in the investigation and determine what evidence is relevant and what evidence is impermissible regardless of relevance. The superintendent or designee may also question parties and witnesses to adequately assess credibility prior to issuing a determination.

3. The superintendent or designee will issue a written decision. The superintendent or designee will seek to issue this decision within thirty (30) calendar days of the district's receipt of the complaint. In the event an extension is needed, the district will provide written notice to the parties of the anticipated response date.

4. Standard of Proof

   a) Decisions will be based on the preponderance of the evidence;

   b) Decisionmaker will evaluate relevant and not otherwise impermissible evidence for its persuasiveness;

5. Determination of Whether Sex Discrimination Occurred

   The superintendent or designee will issue a written decision to the parties at the same time. The decision will include:

   a) An explanation of the allegations;

   b) The superintendent's or designee's factual findings;

   c) An application of the district's policy to the facts, and a statement of conclusion as to whether a preponderance of the evidence substantiated that the complainant was subjected to sex discrimination;

   d) If sex discrimination was substantiated, a determination regarding responsibility, any disciplinary or other sanctions imposed on the respondent, whether remedies designed to restore or preserve equal access to the education program or activity will be provided, the corrective measures the district deems necessary, and a statement of assurance that the district will take steps to prevent the recurrence of sex discrimination and remedy its effects; and

   e) Notice of the parties' right to appeal to the school board and the necessary filing information.

6. The district must simultaneously send a copy of the decision to the Office of the Superintendent of Public Instruction (OSPI).

7. Any corrective measures will be instituted as quickly as possible, but in no event more than thirty (30) calendar days after the decision is issued, unless there is an appeal and the district is barred by due process considerations or a lawful order from imposing the discipline until the appeal process is concluded.

DRAFT

8. Staff may also pursue complaints through the appropriate collective bargaining agreement process or anti-discrimination policy.

P. Disciplinary Sanctions and Remedies

1. Disciplinary Sanctions

a) Following a determination that sex-based harassment occurred, the district may impose disciplinary sanctions.

b) "Disciplinary sanctions" means consequences imposed on a respondent following a determination under these grievance procedures that the respondent violated the district's prohibition on sex discrimination. Disciplinary sanctions against students will be issued in accordance with Policy 3241, Student Discipline. Disciplinary sanctions against employees will be issued in accordance with Policy 5281, Disciplinary Action or Discharge.

2. Remedies

a) Following a determination that sex-based harassment occurred, the district may also provide remedies.

b) "Remedies" means measures provided to a complainant or any other person the district identifies as having had their equal access to the district's education program or activity limited or denied by sex discrimination. These measures are provided to restore or preserve that person's access to the education program or activity.

c) Remedies may include but are not limited to:

i. A continuation of supportive measures;

ii. Referrals to school counseling, health services, or the district's employee assistance program;

iii. Course and registration adjustments, such as retroactive withdrawals or changes in schedules;

iv. Adjustments to academic deadlines and course schedules;

v. Education to the individual and/or the community;

vi. Permanent or temporary alteration of work arrangements for employees;

vii. Provision of school safety escorts;

viii. Climate surveys; and

ix. Limitations on contact between the parties.

Q. Level Two – Appeal to the Board of Directors

If a party disagrees with the superintendent's decision, the party may appeal to the district's board

DRAFT

of directors or designee by filing a written notice of appeal with the secretary of the board within ten (10) calendar days of receipt of the superintendent's decision.

1. Notice of Appeal and Hearing

   a) If the complaint involves a named respondent, the district will implement appeal procedures equally for both parties and provide written notice to both parties when an appeal is filed.

   b) The board or designee will hold an appeal hearing within twenty (20) calendar days of receipt of the notice of appeal unless otherwise agreed to by the complainant and the superintendent or for good cause.

2. Appeal Decisionmaker

   a) The board may delegate its authority for conducting an appeal to an individual or group. However, the board cannot delegate its authority to the superintendent, Title IX coordinator, complaint investigator, or any other employee of the district.

   b) The appeal must be heard by an individual or group of individuals who are trained, impartial, and do not have any conflicts or bias for any of the parties.

3. The Appeal Hearing Process

   a) All parties will be allowed a reasonable and equal opportunity to present such witnesses and testimony as the board or its designee deems relevant and material.

   b) The board or its designee will issue a written decision within thirty (30) calendar days following the board's receipt of the notice of appeal. In the event an extension is needed, the board or its designee will provide written notice to the parties of the anticipated date by which the written decision will be issued. The decision will be provided in a language the parties can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act.

   c) The decision will include notice of the right to appeal to OSPI and the necessary filing information. The district will send a copy of the appeal decision to OSPI.

R. Level Three – Appeal to the Office of the Superintendent of Public Instruction

1. If a party disagrees with the decision of the board of directors, or if the district fails to comply with this procedure, the party may file a complaint with OSPI.

2. A complaint must be received by OSPI within twenty (20) calendar days of the date the party received the board's decision, unless OSPI grants an extension for good cause. Complaints may be submitted by mail, fax, electronic mail, or hand delivery.

3. A complaint must be in writing and include:

   a) A description of the specific acts, conditions, or circumstances alleged to violate applicable anti-discrimination laws;

   b) The name and contact information, including address, of the party;

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c) The name and address of the district;

d) A copy of the district's complaint and appeal decision, if any;

e) A proposed resolution of the complaint or relief requested; and

f) If the allegations concern a specific student, the complaint must include the name and address of the student or, in the case of a homeless youth, contact information.

4. Upon receipt of a complaint, OSPI may open an investigation, which may include conducting an independent review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal. Following the investigation, OSPI will make an independent determination as to whether the district has failed to comply with RCW 28A.642.010 or Chapter 392-190 WAC and will issue a written decision that addresses each allegation in the complaint and any other compliance issues identified. If OSPI determines that there was noncompliance, the written decision will assign corrective action and documentation requirements for the district.

5. All corrective actions must be completed within the timelines established by OSPI. If timely compliance is not achieved, OSPI may take further action, including but not limited to referring the district to appropriate state or federal agencies.

6. A complaint may be resolved at any time before the completion of the investigation if the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.

S. Level Four - Administrative Hearing

A party or the district may appeal the written decision of OSPI by filing a written notice of appeal with OSPI within thirty (30) calendar days of the date of receipt of OSPI's written decision. OSPI will conduct a formal administrative hearing under the Administrative Procedures Act, Chapter 34.05 RCW.

VI. Other Complaint Options

A. Office for Civil Rights (OCR), US Department of Education

OCR enforces federal civil rights laws, which prohibit discrimination in public schools on the basis of race, color, national origin, sex, disability, and age. File complaints with OCR within 180 calendar days of the date of the alleged discrimination.

US Department of Education
Office of Civil Rights
400 Maryland Ave.
Washington DC 20202
OCR@ed.gov
Fax: 202-245-8392

B. Washington State Human Rights Commission (WSHRC)

WSHRC enforces the Washington Law Against Discrimination (RCW 49.60), which prohibits discrimination in employment and places of public accommodation, including schools. File complaints with WSHRC within six (6) months of the date of the alleged discrimination.

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Washington State Human Rights Commission
711 Capitol Way, Suite 402
PO Box 42490
Olympia, WA 98504-2490
frontdesk@hum.wa.gov
Telephone: 1-800-233-3247
www.hum.wa.gov

C. For Complaints involving employee-on-employee conduct:

Equal Employment Opportunity Commission (EEOC)
Seattle Field Office
909 First Avenue, Suite 400
Seattle, WA 98104-1061
Telephone: 800-669-4000
Facsimile: 206-220-6911
TTY: 800-669-6820
ASL Video Phone: 844-234-5122
www.eeoc.gov

VII. Prohibited Conduct

This section describes the specific forms of prohibited sex discrimination, sex-based harassment, and retaliation. Speech or conduct protected by the First Amendment will not be considered a violation of this policy. All definitions below encompass actual and attempted offenses.

A. "Consent" or "affirmative consent" means a conscious and voluntary agreement to engage in sexual activity as a requirement before sexual activity, as defined in RCW 28A.300.475.

B. "Sex discrimination" means different treatment with respect to a person's employment or participation in a district education program or activity that is discriminatory and based on sex, sex stereotypes, sex characteristics, pregnancy or related conditions, sexual orientation, and gender identity. There are three types of sex discrimination, which are defined below: different (or disparate) treatment, disparate impact, and sex-based harassment.

C. "Different (or disparate) treatment discrimination" means any intentional differential treatment of a person that is based on a person's actual or perceived sex and that excludes a person from participation in, denies a person benefits of, or otherwise adversely affects a term or condition of a person's participation in the district's education program or activity.

D. "Disparate impact discrimination" means policies or practices that appear to be neutral though unintentionally result in a disproportionate impact on the basis of sex and that excludes a person from participation in, denies a person benefits of, or otherwise adversely affects a term or condition of a person's participation in the district's education program or activity.

E. "Sex-based harassment" is a form of sex discrimination and means:

1. Sexual harassment and other harassment on the basis of sex, including on the basis of:

   a) Sex stereotypes;

   b) Sex characteristics;

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c) Pregnancy or related conditions;

d) Sexual orientation, and

e) Gender identity.

2. There are different types of sex harassment, including "quid pro quo harassment," "hostile environment harassment," and specific sexual offenses defined further below.

F. "Quid pro quo harassment" means an employee, agent, or other person authorized by the district to provide an aid, benefit, or service under the district's education program or activity explicitly or impliedly conditioning the provision of such an aid, benefit, or service on a person's participation in unwelcome sexual conduct.

G. "Hostile environment harassment," means unwelcome sex-based conduct that, based on the totality of the circumstances, is subjectively and objectively offensive and is so severe or pervasive that it limits or denies a person's ability to participate in or benefit from the recipient's education program or activity (i.e., creates a hostile environment).

Whether a hostile environment has been created is a fact-specific inquiry that includes consideration of the following:

1. The degree to which the conduct affected the complainant's ability to access the district's education program or activity;

2. The type, frequency, and duration of the conduct;

3. The parties' ages, roles within the district's education program or activity, previous interactions, and other factors about each party that may be relevant to evaluating the effects of the conduct;

4. The location of the conduct and the context in which the conduct occurred, including that the district may consider the effects of off-campus conduct when evaluating whether there is a hostile environment on campus; and

5. Other sex-based harassment in the district's education program or activity.

H. "Sexual assault" means an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation. This includes rape, fondling, sodomy, sexual assault with an object, statutory rape, and incest.

I. "Dating violence" means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim and where the existence of such a relationship shall be determined based on the following factors: the length of the relationship, the type of relationship, and the frequency of interaction.

J. "Domestic violence" means felony or misdemeanor crimes committed by a person who is a current or former spouse or intimate partner of the victim under the family or domestic violence laws of the jurisdiction, or a person similarly situated to a spouse of the victim; is cohabitating, or has cohabitated, with the victim as a spouse or intimate partner; shares a child in common with the victim; or commits acts against a youth or adult victim who is protected from those acts under the family or domestic violence laws of the jurisdiction.

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K. "Stalking" means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for the person's safety or the safety of others, or to suffer substantial emotional distress.

L. Sex-based harassment also includes:

1. Acts of sexual violence;

2. Unwelcome sexual or gender-directed conduct or communication that interferes with an individual's educational performance or creates an intimidating, hostile, or offensive environment;

3. Unwelcome sexual advances;

4. Unwelcome requests for sexual favors;

5. Sexual demands when submission is a stated or implied condition of obtaining an educational benefit; and

6. Sexual demands where submission or rejection is a factor in an academic or other school-related decision affecting an individual.

M. "Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process.

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APPROVED:

_____ _____

Jeff Snell, Superintendent Date
Vancouver Public Schools

(DRAFT 10-08-24)

NEW Sex Discrimination and Sex-Based Harassment of Students Prohibited – Implementation Procedure

This procedure sets forth the implementation requirements of Policy 3205 and Policy 5011 and specifies the district's obligations with respect to establishing an educational and work environment that does not tolerate sex discrimination, including sex-based harassment.

I. District Notice and Information

A. Information about Policy 3205 (Sex Discrimination and Sex-Based Harassment of Students Prohibited) and Policy 5011 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited) and their procedures will be clearly stated and:

1. Conspicuously posted on the district's website;
2. Conspicuously posted throughout each school building;
3. Provided to each employee; and
4. Included in each student, staff, volunteer, and parent handbook.

B. Such notices will:

1. Include a statement that the district does not discriminate on the basis of sex and prohibits sex discrimination and sex-based harassment in its education program or activity and in employment;
2. State that questions about Title IX may be referred to the district's Title IX coordinator, the Office for Civil Rights, or both;
3. Identify the district's Title IX coordinator and provide contact information, including name or title, office address, telephone number, and email address;
4. Explain how to locate the district's sex discrimination policy and grievance procedures;
5. Explain how to report information about conduct that may constitute sex discrimination; and
6. Explain how to make a complaint of sex discrimination.

C. If necessary, due to the format or size of any publication, the district may instead include a statement that the district prohibits sex discrimination, including sex-based harassment, in any education program or activity that it operates. It will also state that individuals may report concerns or questions to the Title IX coordinator, and provide the location of the notice described above on the district's website.

D. Copies of Policy 3205 (Sex Discrimination and Sex-Based Harassment of Students Prohibited) and Policy 5011 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited) and their procedures, will be posted on the district website and in each district building in a place accessible to students, staff, volunteers, and parents, and visitors.

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E. At a minimum, information about the recognition and prevention of sex discrimination, including sex-based harassment, and the elements of this policy will be included in orientation sessions for staff, students, and regular volunteers.

F. Students will be provided with age-appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies at student orientation sessions and on other appropriate occasions.

G. Students, staff, volunteers, and parents will be informed that sexual harassment may include, but is not limited to:

1. Pressuring a person for sexual favors;
2. Writing graffiti of a sexual nature on school property;
3. Distributing or displaying sexually explicit texts, emails, or pictures;
4. Making unwelcome, offensive or inappropriate sexual comments, gestures, or jokes;
5. Making unwelcome comments about someone based on their sex, appearance, sexual orientation, or gender identity or expression;
6. Unwelcome touching of a sexual nature or stalking a person; and
7. Physical violence, including rape, sexual assault, dating violence, and domestic violence.

II. The Title IX Team

The Title IX team refers to the Title IX coordinator, investigators, decisionmakers, appeal decisionmakers, informal resolution facilitators, and people with the authority to modify or terminate supportive measures.

III. Roles of Members of the Title IX Team

Any individual designated with any of the following roles must not have a conflict of interest or bias for or against any of the parties:

A. The Title IX Coordinator is the person authorized by the superintendent to coordinate the district's federal and state and sex discrimination and sex-based harassment regulation compliance efforts. The district's Title IX Coordinator can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
360-313-1000
Jeff.fish@vansd.org

B. A person with authority to modify or terminate supportive measures is an impartial employee and someone other than the employee who made the initial decision on supportive measures. This employee may not be a subordinate of the Title IX coordinator. This person has the

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authority to modify or reverse a decision about supportive measures, upon request of a party. The decision will be based on a determination that the initial supportive measure decision was inconsistent with the definition of supportive measures under Title IX, at 34 CFR 106.2.

C. An informal resolution facilitator is a person who has received training on the rules and practices associated with the district's informal resolution processes and on how to serve impartially, including avoiding conflicts of interest and bias. The complaint investigator, decisionmaker, or appeal decisionmaker cannot serve as the informal resolution facilitator. The facilitator must not have a conflict of interest or bias for or against either of the parties. However, a facilitator will not be considered biased solely because they are an employee of the district or are paid to serve as the informal resolution facilitator.

D. An investigator is a person who is impartial and has been trained to investigate compliance with the district's sex discrimination grievance process as described in Grievance Procedure 3205.1. The investigator can be the same person who serves as the Title IX coordinator or the decisionmaker.

E. The decisionmaker is the superintendent or a designee who reaches the final determination of responsibility for the allegation of sex discrimination or sex-based harassment. The decisionmaker can be the same person who serves as the Title IX Coordinator or the investigator.

F. The appeal decisionmaker is the board of directors or designee. The superintendent or any other employee of the district cannot be designated to serve as the appeal decisionmaker.

IV. Training for the Title IX Team

A. All employees responsible for implementing the district's grievance procedures must be trained on the following topics, to the extent related to their responsibilities:

1. The definition of sex-based harassment under Title IX and state law;
2. The scope of the district's education program or activity;
3. How to conduct an investigation, the grievance process, and the informal resolution process;
4. How to serve impartially;
5. Their responsibilities under Chapter 392-190 WAC; and
6. How to raise awareness of and eliminate bias based on sex, race, creed, religion, color, national origin, honorably discharged veteran or military status, sexual orientation, gender expression, gender identity, the presence of any sensory, mental, or physical disability, or the use of a trained dog guide or service animal.

V. Additional training requirements

A. The Title IX coordinator and any designees must be trained on:

1. The responsibilities of the Title IX coordinator;

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2. Specific responsibilities for ensuring equal opportunity to pregnant and parenting students;

3. The provision of supportive measures;

4. The district's recordkeeping requirements; and

5. Any other training necessary to coordinate the district's compliance with Title IX.

B. Investigators must also receive training on writing an investigative report that fairly summarizes relevant evidence.

C. The decisionmaker and appeal decisionmaker must also receive training on use of evidence in the grievance process, including the requirement that questions and evidence about a complainant's sexual predisposition or prior sexual conduct are not relevant unless offered to prove that someone other than the respondent committed the alleged conduct or specific incidents of the complainant's prior sexual behavior with respect to the respondent are offered to prove consent.

D. Appeal decisionmakers must also receive training on any technology to be used during a grievance hearing.

VI. Compliance Responsibilities

A. The Title IX coordinator will inform the school community of the district's responsibilities under Policy 3205 and related policies and procedures, including Policy 3206 (Pregnant and Parenting Students), Policy 3211 (Gender Inclusive Schools), and Policy 5210 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited).

B. The Title IX Coordinator will ensure the district has a process and system in place for offering and coordinating supportive measures for all students and staff.

C. The Title IX Coordinator will ensure the district has a process and system in place to provide support and modifications to pregnant and parenting students and staff.

D. The Title IX Coordinator will annually:

1. Monitor the district's education program and activities for barriers to reporting information about conduct that reasonably may constitute sex discrimination under Title IX and this policy and procedure; and

2. Take steps reasonably calculated to address such barriers.

E. When notified of conduct that may constitute sex discrimination under Title IX, Washington State law, or the district's policies, the Title IX coordinator or designee will take the following actions to promptly and effectively end any discrimination or harassment in the district's education program or activity, prevent its recurrence, and remedy its effects:

1. Treat the complainant and respondent equitably;

2. Offer and coordinate supportive measures, as appropriate, for the complainant;

3. Offer and coordinate supportive measures, as appropriate, for the respondent if the district has initiated grievance procedures or offered an informal resolution process to the

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respondent; and

4. Notify the complainant or, if the complainant is unknown, the individual who reported the district's grievance procedures under Grievance Procedure 3205.1 and the informal resolution process, if available and appropriate.

F. If a complaint is initiated under the grievance procedures, the Title IX coordinator or designee will:

1. Evaluate the complaint and, as appropriate, initiate the grievance procedures or other applicable procedures;

2. Describe and offer the informal resolution process, if available and appropriate; and

3. Notify the respondent of the grievance procedures, if appropriate and applicable.

G. The Title IX coordinator or designee will determine whether to initiate a complaint of sex discrimination under the grievance procedures in the absence of a complaint, if a complaint has been withdrawn, or if the informal resolution process has been terminated. To make this determination, the Title IX coordinator or designee will consider, at a minimum, the following factors:

1. The complainant's request not to proceed with a complaint;

2. The complainant's reasonable safety concerns regarding a complaint;

3. The risk that additional acts of sex discrimination could occur if a complaint is not initiated;

4. The severity of the alleged sex discrimination, including whether the discrimination, if established, would require the removal of a respondent from campus or imposition of another disciplinary sanction;

5. The age and relationship of the parties, including whether the respondent is an employee of the district;

6. The scope of the alleged sex discrimination, including information suggesting a pattern of discriminatory conduct or discrimination affecting multiple people;

7. The availability of evidence to assist a decisionmaker in determining whether sex discrimination occurred; and

8. Whether the district could end the alleged sex discrimination and prevent its recurrence without initiating its grievance procedures.

H. The Title IX coordinator or designee may initiate a complaint if they determine the alleged conduct presents an imminent and serious threat to the health or safety of the complainant or others, or prevents the district from ensuring equal access on the basis of sex.

I. The Title IX coordinator or designee will ensure that any corrective measures and remedial actions are provided as quickly as possible, but in no event more than thirty (30) days after the determination of responsibility. If the respondent appeals the imposition of discipline, the district may be barred from imposing the discipline until the appeal process is concluded.

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VII. Staff Responsibilities

A. Any district employee who witnesses or receives a report or complaint about sex discrimination, including sex-based harassment, is responsible for informing the district's Title IX coordinator. All staff are also responsible for directing reporters to the complaint process.

B. Any district employee who is informed by a student, or a student's parent, guardian, or legal representative, of the student's pregnancy or pregnancy-related condition must promptly:

1. Provide them with the Title IX coordinator's contact information; and

2. Inform the student (or the student's legal representative) that the Title IX coordinator can coordinate specific actions to prevent pregnancy-related discrimination and support equal access to the district's education program or activity.

3. Such notice does not need to be provided if the employee reasonably believes that the Title IX coordinator has already been notified.

C. Reports of other forms of discrimination and discriminatory harassment will be referred to the district's civil rights coordinator. Reports of disability discrimination or harassment will be referred to the district's Section 504 coordinator. Suspected child abuse must be reported to law enforcement or child protective services.

D. The district will not provide assistance in obtaining educational employment or provide a recommendation of educational employment for an employee, contractor, or agent that the district, or an individual acting on behalf of the district, knows or has probable cause to believe, has engaged in sexual misconduct with a student or minor in violation of the law.

VIII. District Training and Orientation Requirements

A. A fixed component of all initial and annual orientation sessions for staff, students, and regular volunteers will introduce the elements of the district's policy and procedure prohibiting sex discrimination, including the district's grievance procedure and implementation procedure. Staff will be provided information on recognizing and preventing sex discrimination, including sex-based harassment. Staff will be fully informed of their responsibilities for responding to reports of sex discrimination, the district's complaint procedures, and their roles and responsibilities under the policy and procedure.

B. All employees must receive training on the district's legal obligations and policy and procedures prohibiting sex discrimination, including those related to pregnancy and pregnancy-related conditions, marital status, and parental status. The training will include, at a minimum:

1. Employees' obligations to provide notice of the Title IX coordinator if the employee witnesses or receives a report or complaint about sex discrimination;

2. The district's prohibition of sex discrimination, including prohibitions of harassment based on sexual orientation, gender identity, gender expression, pregnancy, pregnancy-related conditions, and marital or pregnancy status; and

3. The district's prohibition of retaliation against a student or staff member for exercising these rights, including imposing or threatening to impose negative educational outcomes because a student requests accommodation, files a complaint, or otherwise exercises their rights under the policy.

DRAFT

C. All employees will be reminded of their legal responsibility to report suspected child abuse and how some allegations of sex-based harassment may implicate that responsibility. Regular volunteers will be informed of any similar reporting responsibilities.

IX. Investigation Recordkeeping

The district will maintain, for a period of at least seven years, the following records:

1. All materials used for Title IX training for employees, the Title IX coordinator, investigators, decisionmakers, and any person who facilitates an informal resolution process for the district. The district will make such materials available upon request.

2. Records of any actions, including supportive measures, taken in response to a report of sex-based harassment under Title IX, even if no complaint is filed.

3. Records of any informal resolution and the result.

4. Records of each sex discrimination investigation, including any determination regarding responsibility and any recording or transcript; any disciplinary sanctions imposed on the respondent and any remedies provided to the complainant; and any appeal.

X. Policy and Procedure Review

A. Annually, the superintendent or designee and the Title IX coordinator will convene an ad hoc committee composed of representatives of certificated and classified staff, volunteers, students, and parents to review the use and efficacy of this policy and procedure.

B. Based on the review of the committee, the superintendent will prepare a report to the board, including any recommended policy changes. The superintendent will consider adopting changes to this procedure if recommended by the committee.

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APPROVED:

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Jeff Snell, Superintendent Date
Vancouver Public Schools

NEW Procedure – Pregnant and Parenting Students

The superintendent establishes this procedure to provide protection and equal treatment of students who are pregnant, who have pregnancy-related conditions, and who are new parents. Nothing in this procedure should be construed to allow different treatment on the basis of sex concerning a student's current, potential, or past parental, family, or marital status, except as necessary to provide pregnancy or pregnancy-related accommodations. This procedure and its protections apply to all pregnant students, regardless of gender identity or expression.

I. Key Definitions/Terms

The district uses the definitions included in Grievance Procedure 3205.1 for sex discrimination, including sex-based harassment, of students. For the purpose of this procedure, the following additional definitions apply:

A. "Caretaking" means caring for and providing for the needs of a child.

B. "Familial status" refers to the configuration of one's family or one's role in a family.

C. "Marital status" refers to the state of being married, single, or divorced.

D. "Medically necessary" is a determination made by a student's health care provider.

E. "Parental status" refers to the status of a person who, with respect to another person who is under the age of 18 (or a person who is 18 or older but incapable of self-care because of a mental or physical disability); is a biological, adoptive, foster, or stepparent; a legal custodian or guardian; acting in loco parentis; or actively seeking legal custody, guardianship, visitation, or adoption of such a person.

F. "Parental, family, and marital status discrimination" is different treatment based on one or more of those statuses. For example, treating an unmarried parent worse than a married parent, treating a married person of one sex or gender less favorably than a married person of another sex or gender based on stereotypes, or treating a person differently because of the sex or gender of their spouse.

G. "Pregnancy and pregnancy-related conditions" include, but are not limited to:

1. Pregnancy, childbirth, false pregnancy, termination of pregnancy, miscarriage, lactation (expressing breast milk);

2. Medical conditions related to the above;

3. Recovery from above; and

4. Any other conditions in accordance with state and federal law.

H. "Pregnancy discrimination" includes treating a person who is pregnant person or has a pregnancy-related condition less favorably than persons who are not pregnant or failing to

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provide legally mandated leave or accommodations.

I. "Reasonable modifications" mean individualized modifications to the district's policies, procedures, or practices that are comparable to the modifications offered for temporary medical conditions. A modification that would fundamentally alter the nature of the district's education program or activity is not a reasonable modification.

J. "Student's legal representative" means a parent or other person who has a legal right to act on behalf of the student.

II. Student Protections

The district will give all pregnant and parenting students equal access to district programs, extracurricular activities, athletic programs, and educational opportunities. The district will not require students to change educational plans (e.g., drop out of a class or program), deny an honor or award, or discipline a student based on pregnancy or parental status.

III. Specific actions to prevent discrimination and support equal access

The district will take specific actions to promptly and effectively prevent sex discrimination and support equal access to the district's education program or activity once a student, or a student's legal representative, notifies any employee or the Title IX coordinator of the student's pregnancy or related conditions.

IV. Employees Must Provide Notice of the Title IX Coordinator

A. If a student, or a student's legal representative, informs any district employee of the student's pregnancy or related condition, the employee will promptly provide them with the district's Title IX coordinator's contact information and also inform them that the Title IX coordinator can coordinate specific actions to prevent pregnancy-related discrimination and to support the student's equal access to the district's education program or activity. Such notice does not need to be provided if the employee reasonably believes that the student has already been notified about the Title IX coordinator.

B. All employees will receive training on the district's legal obligations and policy and procedures prohibiting sex discrimination, including those related to pregnancy or related conditions, marital status, and parental status.

V. The Title IX Coordinator's Responsibility

If a student, or a student's legal representative, informs any employee or the Title IX coordinator of the student's pregnancy or related conditions, the Title IX coordinator will inform them of the following:

1. The district's policy of nondiscrimination;

2. The district's obligation to provide equal access and modifications; and

3. The district's confidentiality obligations under state and federal laws, and this policy and procedure.

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VI. Privacy and Confidentiality

A. A student's pregnancy or related conditions may constitute confidential medical or educational information. Disclosing information about a pregnancy or pregnancy-related condition may violate privacy laws.

B. School employees should not disclose a student's pregnancy status or related conditions to others unless (1) legally required to do so or (2) the student has authorized such disclosure, subject to the following exceptions:

1. The district may disclose some information to the extent necessary to provide reasonable modifications. For example, the district may need to tell staff to implement reasonable modifications for a student, but does not need to disclose why the reasonable modifications are being provided.

2. A person with the legal right to consent to the disclosure provides written consent and specifies to whom the disclosure may be made.

3. As required by any law, regulation, or to comply with state or federal grant awards or other funding agreements.

4. When required by federal, state or local law, including FERPA, and those laws do not conflict with Title IX.

VII. Comparable treatment to temporary medical conditions

The district will treat pregnancy or related conditions in the same manner and under the same policies as temporary medical conditions.

VIII. Certification to participate

The district will not require a student who is pregnant or has related conditions to provide certification from a healthcare provider or any other person that the student is physically able to participate in the district's class, program, or extracurricular activity unless:

1. The certified level of physical ability or health is necessary for participation in the class, program, or extracurricular activity;

2. The district requires such certification of all students participating in the class, program, or extracurricular activity; and

3. The information obtained is not used as a basis for discrimination.

IX. Reasonable modifications

A. Process for requesting reasonable modifications

1. The district will make reasonable modifications to its policies, procedures, and practices as necessary to prevent sex discrimination and support equal access to the district's education program or activity.

DRAFT

2. Each reasonable modification will be based on the student's individualized needs.

3. The district will consult with the student in determining what modifications are required.

4. The student has the discretion to accept or decline each reasonable modification offered by the district. If the student accepts a modification, the district will implement it.

5. A modification that would fundamentally alter the nature of its education program or activity is not a reasonable modification.

B. Reasonable modifications may include, but are not limited to:

1. Breaks during class to express breast milk, breastfeed, or attend to health needs associated with pregnancy or related conditions, including eating, drinking, or using the restroom;

2. Allowing a student to sit or stand;

3. Allowing a student to carry or keep water nearby;

4. Intermittent absences to attend medical appointments;

5. Excusing medically necessary absences;

6. Access to online or homebound education;

7. Changes in schedule or course sequence;

8. Extensions of time for coursework and rescheduling of tests and examinations;

9. Changes in physical space or supplies (for example, access to a larger desk or a footrest);

10. Accommodations to protect the health and safety of the student and their pregnancy (such as allowing the student to maintain a safe distance from hazardous substances); and

11. Elevator access.

X. Voluntary access to separate and comparable portion of program or activity

A. The district will allow the students who are pregnant or parenting to voluntarily access any separate portion of the district's education program or activity, provided it is comparable to that offered to students who are not pregnant or parenting.

B. The district may offer alternative schools or programs for pregnant and parenting students so long as participation in such programs is voluntary. When discussing options with students, staff will present all options available in a non-coercive manner.

C. Parenting classes and programs must be open to students regardless of gender.

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XI. Pregnancy-related absences

A. The district will not penalize a student for absences related to pregnancy or childbirth. Childbirth or pregnancy-related absences deemed medically necessary will be excused. When a student returns to school following a pregnancy-related absence, the student will be reinstated to the academic status and, as practicable, to the extracurricular status that the student held before their absence.

B. Pregnant students are entitled to receive make-up assignments for classes missed due to pregnancy or childbirth.

C. If home instruction is available for students who need to stay home due to a medical condition, home instruction will be made available to students who need to stay home due to pregnancy or childbirth.

D. Health plans and related services will be provided to pregnant students in the same manner as services are provided to students with temporary disabilities.

XII. Limitation on supporting documentation

A. The district will not require supporting documentation unless it is necessary to determine the reasonable modifications to provide, whether to take specific actions to prevent pregnancy and pregnancy-related discrimination, or how to support a pregnant or parenting student's equal access to the district's education program or activity.

B. Examples of situations when supporting documentation is not necessary include, but are not limited to, when the student's need for a specific action is obvious, such as:

1. When a student who is pregnant needs a larger uniform;

2. When the student has previously provided the district with sufficient supporting documentation;

3. When the reasonable modification at issue is allowing a student to use a larger desk, sit or stand, or take breaks to eat, drink, or use the restroom;

4. When the student has lactation needs; or

5. When the reasonable modification is available to students for reasons other than pregnancy or related conditions without submitting supporting documentation.

XIII. Lactation space

A. The district will provide students access to a lactation space, which must be a space other than a bathroom.

B. The lactation space must be clean, shielded from view, free from intrusion from others, and may be used by a student for expressing breast milk or breastfeeding as needed.

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XIV. Retaliation Prohibited

A. "Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process. Retaliation by the district, a student, or an employee or other person authorized by the district to provide any aid, benefit, or service under the district's education program or activity is prohibited.

B. When the district has information about conduct that reasonably may constitute retaliation, the district will respond promptly and effectively, inform the Title IX coordinator, and provide notice of the district's grievance process for addressing complaints of retaliation. Upon receiving a complaint alleging retaliation, the district will initiate its grievance procedures as described below or, as appropriate, an informal resolution process.

XV. Grievance Procedure

A. The district uses Grievance Procedure 3205.1 as the process for receiving, investigating, and resolving reports or complaints of sex discrimination, including harassment based on a person's actual or perceived pregnancy status, and retaliation.

B. Complaints will be taken seriously and handled in the same manner as other sex discrimination and sex-based harassment complaints. Grievance Procedure 3205.1 is designed to provide for a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination or retaliation is found to have occurred, the district will take prompt and effective action to eliminate the discrimination or retaliation, prevent its reoccurrence, and, as appropriate, remedy its effects.

C. For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
Telephone: 360-313-1280
jeff.fish@vansd.org

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APPROVED:

_____ _____

Jeff Snell, Superintendent
Vancouver Public Schools

Date

REPEAL Procedure - Sexual Harassment of District Staff Prohibited

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~~I. Sexual Harassment-Employees, Volunteers, Parents, and Students~~

~~A. If the district knows or reasonably should have known that sexual harassment has happened, the district will promptly investigate to determine what occurred and will take appropriate steps to resolve the situation.~~

~~B. If the investigation reveals that sexual harassment happened, the district will take prompt and effective steps reasonably calculated to end the sexual harassment, prevent its recurrence and, as appropriate, remedy its effects.~~

~~C. A formal complaint filed by or on behalf of a student complainant against an employee respondent will be investigated under the definitions, requirements, and procedures of Policy and Procedure 3205, Sexual Harassment of Students Prohibited.~~

~~II. Retaliation and False Allegations~~

~~A. Retaliation is prohibited against any individual who files a complaint or who participates in a complaint investigation. When an informal or formal complaint of sexual harassment is made, the district will take steps to stop further harassment and prevent any retaliation against the person who made the complaint, was the subject of the harassment, or against those who provided information as a witness. The district will investigate all allegations of retaliation and take actions against those found to have retaliated.~~

~~B. It is also a violation of this procedure to knowingly report false allegations of sexual harassment. Persons found to knowingly report or corroborate false allegations will be subject to appropriate discipline.~~

~~III. Definitions – General~~

~~A. "Discriminatory Harassment" means conduct based on a person's sex, race, creed, religion, color, national origin, sexual orientation, gender expression, gender identity, honorably discharged veteran or military status, presence of any sensory, mental or physical disability, or use of a trained dog guide or service animal; and the alleged conduct is sufficiently severe, persistent, or pervasive that it has the effect of unreasonably interfering with an individual's work performance, thereby creating an intimidating, hostile or offensive environment.~~

~~B. "Sexual Harassment" – Unwelcome sexual advances, requests for sexual favors, sexually motivated physical contact and other verbal or physical conduct or communication of a sexual nature constitute sexual harassment when: (1) submission to such conduct is made either explicitly or implicitly a term or condition of obtaining employment; (2) submission to or rejection of such conduct by an individual is used as a factor in decisions affecting that individual's employment; or (3) that conduct or communication has the purpose or effect of substantially interfering with an individual's work performance, or of creating an intimidating, hostile, or offensive environment.~~

~~C. "Complaint" – A statement by an individual alleging that the individual has been subjected to sexual harassment which constitutes a violation of a federal, state, local statute or a Vancouver~~

~~Public Schools' policy or procedure prohibiting sexual harassment. The complaint will be recorded by the complainant or the investigator. The written complaint will then be signed and dated by the complainant. The complaint should include sufficient background material concerning the alleged sexually-oriented violation so as to identify the person(s) and action(s) that led to the allegation, such as:~~

~~1. Date(s);~~

~~2. Place(s);~~

~~3. Specific Behavior(s);~~

~~4. Victim's Response(s);~~

~~5. Witness(es);~~

~~6. Identify/Name Offender;~~

~~7. Similar acts, if any; and~~

~~8. Remedy(ies) desired.~~

~~D. "Complainant" - An employee, volunteer, or parent who submits a complaint alleging sexual harassment. Any employee or volunteer who witnesses sexual harassment or receives a report, informal complaint or written complaint about sexual harassment is responsible for informing the district's appropriate school administrator or executive director for elementary, middle, or high schools.~~

~~E. "A parent" - for the purpose of this procedure means a parent, guardian, or person having legal custody of a child. If the student is eighteen (18) years of age or older, or is legally emancipated, the procedures for the parent in this procedure may be exercised by the student.~~

~~F. "Title IX coordinators" - The executive directors of elementary, middle, and high schools are the Title IX coordinators for their assigned schools. The assistant superintendent of human resources is the Title IX coordinator for administrators and district office staff.~~

~~IV. Confidentiality~~

~~A. While engaged in resolving any complaint of alleged sexual harassment, the district will protect the confidentiality, insofar as possible, of all persons involved in the complaint process.~~

~~B. If a complainant requests that his or her name not be revealed to the alleged harasser or asks that the district not investigate or seek action against the alleged harasser, the request will be forwarded to the appropriate executive director for evaluation. The executive director should inform the complainant that honoring the request may limit their ability to respond fully to the incident, including pursuing disciplinary action against the alleged harasser.~~

~~C. If the complainant still requests that his or her name not be disclosed to the alleged harasser or that the district not investigate or seek action against the alleged harasser, the district will determine whether or not it can honor such a request while still providing a safe and nondiscriminatory environment for all students, staff and other third parties engaging in district~~

REPEAL

~~activities, including the person who reported the sexual harassment. Although a complainant's request to have his or her name withheld may limit the district's ability to respond fully to an individual allegation of sexual harassment, the district may use other appropriate means to address the sexual harassment.~~

~~V. Title IX Complaint Process~~

~~A. The district will designate and authorize at least one employee to act as "Title IX Coordinator" to coordinate the district's state and federal sex discrimination and sexual harassment regulation compliance efforts. The decision-maker who reaches the final determination of responsibility for alleged Title IX sexual harassment will be the Superintendent or designee. The decision-maker cannot be the same person who serves as the Title IX Coordinator or the investigator of the Title IX complaint.~~

~~B. Any individual designated as Title IX Coordinator, an investigator, or decision-maker, and any person who facilitates an informal resolution process must not have a conflict of interest or bias for or against complainants or respondents in general or individually, and must receive training on the definition of sexual harassment under Title IX, the scope of the district's education program or activity, how to conduct an investigation and grievance process and informal resolution process, and how to serve impartially. The decision-maker must also receive training on how to create an investigative report that fairly summarizes relevant evidence.~~

~~C. Any training materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process must not rely on sex stereotypes and must promote impartial investigations and adjudications of complaints. The district shall maintain for a period of seven years records of any informal resolution and the result, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy; and all materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process, and make such materials available on the district's website or make these materials available upon request for inspection by members of the public.~~

~~D. Sexual Harassment Complaint under Title IX~~

~~1. The Title IX Coordinator will assess whether a formal complaint of sexual harassment meets the criteria for a Title IX complaint. If so, the district will follow procedures as required by Title IX regulations, as well as any other procedures required by federal or state law or district policy.~~

~~2. Under Title IX, the term "sexual harassment" means:~~

~~a) an employee of the district conditioning the provision of an aid, benefit, or service on an individual's participation in unwelcome sexual conduct;~~

~~b) conduct that creates a "hostile environment," meaning unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the education program or activity; or~~

~~c) "sexual assault," as defined in 20 U.S.C. 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. 12291(a)(10), "domestic violence" as defined in 34 U.S.C. 12291(a)(8), or "stalking" as defined in 34 U.S.C. 12291(a)(30).~~

~~E. Supportive Measures under Title IX~~

~~Once any district employee knows, or in the exercise of reasonable care should know, about possible~~

REPEAL

~~sexual harassment, the Title IX Coordinator must promptly contact the complainant and offer to provide the complainant with supportive measures and explain the process for filing a formal complaint. Supportive measures must be offered to the complainant, before or after the filing of a formal complaint, or where no formal complaint has been filed, in accordance with Title IX. Supportive measures may also be provided to the respondent, in accordance with Title IX.~~

~~F. When Title IX Procedures are Required~~

1. ~~The district will implement the Title IX procedures set forth in this policy and procedure in response to a sexual harassment complaint when the alleged conduct constitutes sexual harassment as defined by Title IX regulations, and:~~

   a) ~~The written complaint is filed by the complainant of the alleged sexual harassment, by the complainant's legal guardian, or by the Title IX Coordinator;~~

   b) ~~The complaint requests that the district investigate the allegation(s) of sexual harassment, as defined under Title IX regulations;~~

   c) ~~The complaint is against a named respondent who, at the time of the alleged harassment, was a district employee, district student, or third party involved in district activities and under the control of the district;~~

   d) ~~The alleged sexually harassing conduct occurred in the United States; and~~

   e) ~~The complainant is an employee of the district or is participating in or attempting to participate in the district's educational program or activity at the time.~~

2. ~~If the formal complaint is determined to meet the criteria for a Title IX complaint, the district must respond promptly in a manner that is not deliberately indifferent. "Deliberately indifferent" means that the district's response is clearly unreasonable in light of the known circumstances. The district's investigation and determination regarding responsibility shall be completed within 60 days unless the parties agree to a different timeline or the superintendent or designee determines there is good cause for an extension of the time limit. The district will respect the complainant's wishes with respect to whether the district investigates unless the Title IX Coordinator, after having considered the complainant's wishes, decides that it would be clearly unreasonable not to investigate the allegations.~~

3. ~~The district will acknowledge receipt of the formal complaint by providing the following written notice to the respondent and complainant:~~

   a) ~~Notice of the complaint, investigation, and grievance processes;~~

   b) ~~Notice of the allegations of sexual harassment with sufficient time for the parties to prepare a response before any initial interview and with sufficient detail. Such sufficient detail includes the identities of the parties involved in the incident if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident if known;~~

   c) ~~Notice that the parties may have an advisor of their choice who may be an attorney or non-attorney, and who may inspect and review evidence of the alleged sexual harassment;~~

   d) ~~Notice that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility for alleged sexual harassment is made at the conclusion of the grievance process; and~~

REPEAL

e) Notice of any provision in student conduct policies and procedures that prohibits false statements or submitting false information.

G. Title IX Informal Resolution Process

1. The district may not use the informal resolution process for resolving allegations that a district employee sexually harassed a student. In other circumstances, informal resolution may be offered at any time prior to a determination regarding responsibility for alleged sexual harassment as defined by Title IX regulations, provided that the district obtains the parties' voluntary, written consent and the district provides the parties with written notice disclosing the allegations, the requirements for the informal resolution process, and the circumstances in which the parties would be precluded from continuing with a formal resolution process for the same allegations.

2. A party has the right to withdraw from the informal resolution process and resume the formal Title IX grievance process at any time prior to agreeing to a resolution. The district may not require the waiver of the right to an investigation and adjudication of formal complaints of sexual harassment under Title IX as a condition of enrollment, employment, or enjoyment of any other right, nor may the district require the parties to participate in an informal resolution process.

H. Title IX Formal Resolution Process

1. The district must investigate allegations contained in a formal complaint. If the conduct alleged would not constitute sexual harassment under Title IX regulations even if proved, did not occur in the district's education program or activity, or did not occur against a person in the United States, then the recipient must dismiss the formal complaint under Title IX. Such dismissal does not preclude action under another provision of district policy or procedure or under sexual harassment investigation procedures as required by state or federal law.

2. The district's investigation of a Title IX complaint must:

a) Ensure that the district bears the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility for the alleged sexual harassment. The district may not access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting or assisting in their professional capacity and made and maintained in connection with the provision of treatment to the party unless the district obtains the party's voluntary, written consent to do so.

b) Provide an equal opportunity for the parties to present witnesses and other inculpatory and exculpatory evidence;

c) Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;

d) Provide the parties with the same opportunities to have others present during any grievance proceeding; including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be an attorney or non-attorney. The district will apply any restrictions regarding the extent to which an advisor may participate equally to both parties;

e) Provide to a party whose participation is invited or expected written notice of the date, time, location, participants, and purpose of all interviews or other meetings, with sufficient time for the parties to prepare to participate;

REPEAL

~~f) Prior to the completion of an investigative report, provide an equal opportunity for the parties to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation. This includes evidence that the district does not intend to rely on in reaching a determination of responsibility for the alleged sexual harassment, regardless of the source of the evidence. The parties will have at least ten (10) days to submit a written response for the investigator to consider prior to completion of the investigative report.~~

~~g) At least ten (10) days prior to a determination regarding responsibility, create an investigative report that fairly summarizes relevant evidence, and send the investigative report in an electronic or hard copy format to each party and each party's advisor for their review and written response.~~

~~h) After transmitting the investigative report to the parties, but before reaching a final determination regarding responsibility, the decision maker must give each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant unless they are offered to prove that someone other than the respondent committed the conduct alleged by the complainant or unless they concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision-maker must explain to the party proposing the questions any decision to exclude a question as not relevant.~~

~~3. At the conclusion of the investigation, the decision-maker (superintendent or designee) must issue a written determination of responsibility regarding the alleged sexual harassment, applying a preponderance of the evidence standard. One or more remedies must be provided any time a respondent is found responsible. Violation of the district's Title IX policy may result in disciplinary up to and including termination of employment.~~

~~4. The superintendent's written determination must be issued to the parties simultaneously and must include the following:~~

~~a) Identification of the allegations potentially constituting sexual harassment under Title IX regulations;~~

~~b) A description of the procedural steps taken from the time of the district's receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, methods used to gather other evidence, and other meetings held with the parties;~~

~~c) Findings of fact supporting the determination;~~

~~d) Conclusions regarding the application of the district's code of conduct policies to the facts;~~

~~e) A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions imposed on the respondent, and whether remedies designed to restore or preserve equal access to the education program or activity will be provided to the complainant; and~~

~~f) The procedures and bases for appealing the superintendent's determination.~~

REPEAL

~~I. Title IX Investigation Appeals~~

~~1. Both parties may appeal from the superintendent's determination regarding responsibility or from the district's dismissal of any allegations contained in a formal Title IX complaint.~~

~~2. A party may appeal the determination regarding responsibility on the following bases:~~

~~a) Procedural irregularity affecting the outcome of the matter;~~

~~b) New evidence that was not reasonably available at the time the determination regarding responsibility was made that could affect the outcome of the matter; or~~

~~c) The Title IX coordinator, investigator(s), or decision-maker(s) had a conflict of interest or bias for or against complainants or respondents generally or individually that affected the outcome of the matter.~~

~~3. Regarding appeal, the district must:~~

~~a) Provide written notice to the other party when an appeal is filed;~~

~~b) Implement appeal procedures equally for both parties;~~

~~c) Ensure that the decision-maker for the appeal is not the same decision-maker who reached the determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator;~~

~~d) Ensure that the decision-maker for the appeal has received the training required by this procedure.~~

~~e) Provide both parties with a reasonable, equal opportunity to submit a written statement in support of or challenging the outcome of the initial determination; and~~

~~f) Issue a written decision describing the result of the appeal and the rationale for the result.~~

~~J. Administrative Leave under Title IX~~

~~These additional Title IX sexual harassment procedures do not preclude the district from placing an employee on administrative leave, with or without pay, pending the conclusion of the grievance process, in accordance with district policy and applicable collective bargaining agreements.~~

~~K. Title IX Investigation Recordkeeping~~

~~1. The district will maintain records of each Title IX sexual harassment investigation, including any determination regarding responsibility and, if any exists, any audio or audiovisual recording or transcript; any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant; and any appeal from the result of a determination regarding responsibility, for a period of seven years, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy.~~

~~2. The district must maintain records of any actions taken in response to a report or formal complaint of sexual harassment under Title IX, for a period of seven years, unless subsequent changes in Title IX regulations provide for a different retention period, or as otherwise required by state law or district policy.~~

REPEAL

~~VI. Informal Complaint Process – State Requirements~~

~~A. Anyone may use the informal process to report and to seek resolution complaints of sexual harassment complaints. Informal reports may be made to any staff member. Staff will notify the complainant of the process and their right to file a formal complaint. Staff will also notify the appropriate Title IX coordinator.~~

~~B. The district will take prompt and effective steps reasonably calculated to end any harassment and to correct any discriminatory effects on the complainant. If an investigation is needed to determine what occurred, the district will take steps to protect the complainant before the final outcome of the investigation.~~

~~C. Examples of possible informal remedies include:~~

~~1. An opportunity for the complainant to explain to the alleged harasser that his or her conduct is unwelcome, offensive or inappropriate, either in writing or face-to-face;~~

~~2. A statement from an administrator to the alleged harasser that the alleged conduct is not appropriate and could lead to discipline if proven or repeated; or~~

~~3. A general public statement from an administrator in a building or work site reviewing the district's sexual harassment policy without identifying the complainant.~~

~~D. The complainant will be informed of how to report any subsequent problems. Additionally, the investigator will conduct periodic follow-up inquiries to verify that no new incidents or instances of retaliation occur and to promptly respond and appropriately address continuing or new problems.~~

~~E. Informal complaints may become formal complaints at the request of the complainant or because the district believes the complaint needs to be more thoroughly investigated.~~

~~VII. Formal Complaint Process – State Requirements~~

~~A. Level One – Complaint to District~~

~~Anyone may initiate a formal complaint of sexual harassment, even if the informal complaint process was utilized. At any level in the formal complaint process under state law, the district will take interim measures to protect the complainant before the final outcome of the district's investigation. The same allegations may qualify as a sexual harassment allegation under federal Title IX regulations, which require actions in addition to the process for investigating sexual harassment allegations under state law. The following process will be followed:~~

~~1. Filing a complaint:~~

~~a) An employee is encouraged to immediately file a complaint with his/her supervisor. If the supervisor is the alleged harasser or the employee does not feel comfortable discussing the situation with his/her supervisor, the employee should contact either:~~

~~(1) The building or site administrator; or~~

REPEAL

(2) The appropriate executive director of elementary, middle, or high schools or the assistant superintendent of human resources.

b) Volunteers should contact any of the administrators listed above. All employees are responsible for informing appropriate district personnel of allegations of sexual harassment that are brought to their attention.

c) The complainant may withdraw his/her complaint at any time. The district will then decide if an investigation should be pursued or other action taken.

d) All formal complaints must be in writing and set forth the specific acts, conditions or circumstances alleged to have occurred that constitute sexual harassment. The appropriate Title IX coordinator may draft the complaint based on the report of the complainant for the complainant to review and approve.

e) The superintendent or appropriate Title IX coordinator may also conclude that the district needs to conduct an investigation based on information in his or her possession, regardless of the complainant's interest in filing a complaint.

f) The time period for filing a complaint is one (1) year from the date of the occurrence that is the subject matter of the complaint. However, a complaint filing deadline may not be imposed if the complainant was prevented from filing due to:

(1) Specific misrepresentations by the district that it had resolved the problem forming the basis of the complaint; or

(2) Withholding of information that the district was required to provide under WAC 392-190-065 or WAC 392-190-005.

g) Complaints may be submitted by mail, fax, email or hand-delivery to a Title IX coordinator. Any district employee who receives a complaint that meets these criteria will promptly notify the appropriate Title IX coordinator.

h) A complainant is strongly encouraged to attempt to resolve his/her complaint within the procedures established by the district.

2. Investigation and response

a) Investigation

(1) The appropriate Title IX coordinator will receive and investigate all formal, written complaints of sexual harassment. Upon receipt of a complaint, the Title IX coordinator will provide the complainant a copy of this procedure.

(2) The Title IX coordinator will conduct the investigation in a manner that is adequate in scope, reliable and impartial. During the investigation process, the complainant and accused party or parties will have an equal opportunity to identify witnesses and relevant evidence.

(3) Complainants and witnesses may have a trusted adult with them during any

REPEAL

~~district-initiated investigatory activities. The school district and complainant may also agree to resolve the complaint in lieu of an investigation.~~

~~(4) When the investigation is completed, the Title IX coordinator will compile a written report of the complaint and the results of the investigation.~~

~~b) Written response~~

~~(1) Upon completion of the investigation, the Title IX coordinator must provide the superintendent or designee with a written report of the complaint and the results of the investigation.~~

~~(2) Within thirty (30) calendar days of receiving the complaint, the superintendent or designee will respond in writing to the complainant and the alleged harasser, unless an extension of time is agreed to by the complainant or because exceptional circumstances related to the complaint require an extension of the time limit. In the event an extension is needed because of exceptional circumstances, the district will notify the complainant in writing of the reason for the extension and the anticipated response date.~~

~~(3) At the time the district responds to the complainant, the district will send a copy of the response to the Office of the Superintendent of Public Instruction (OSPI).~~

~~(4) The written response of the superintendent or designee will include:~~

~~(i) A summary of the investigation results;~~

~~(ii) A statement as to whether a preponderance of the evidence establishes that the complainant was sexually harassed;~~

~~(iii) If sexual harassment is found to have occurred, the corrective measures the district deems necessary, including assurance that the district will take steps to prevent recurrence and remedy its effects on the complainant and others, if appropriate;~~

~~(iv) Notice of the complainant's right to appeal to the school board and the necessary filing information; and~~

~~(v) The superintendent's or designee's written response will be provided in a language the complainant can understand and may require language assistance for complainants with limited English proficiency.~~

~~c) If the complaint alleges discriminatory harassment by a named party or parties, the appropriate Title IX coordinator will provide the accused party or parties with notice of the outcome of the investigation and notice of their right to appeal any discipline or corrective action imposed by the district.~~

~~d) Any corrective measures deemed necessary will be consistent with any relevant collective bargaining agreement and law, and instituted as quickly as possible, but in no event more than thirty (30) days after the superintendent's mailing of a written response, unless the accused is appealing the imposition of discipline~~

REPEAL

~~and the district is barrel by due process considerations or a lawful order from imposing the discipline until the appeal process is concluded. Staff may also pursue complaints through the appropriate collective bargaining agreement process or antidiscrimination policy and procedure.~~

~~e) The district will inform the complainant how to report any subsequent problems. Additionally, the district will conduct follow-up inquiries to see if there have been any new incidents or instances of retaliation, and promptly respond and appropriately address continuing or new problems. Follow-up inquiries will follow a timeline agreed to by the district and complainant.~~

~~B. Level Two - Appeal to Board of Directors~~

~~1. Notice of appeal and hearing~~

~~a) If a complainant disagrees with the superintendent's or designee's written decision, the complainant may appeal the decision to the district's board of directors, by filing a written notice of appeal with the superintendent within ten (10) calendar days following the date upon which the complainant received the response.~~

~~b) The board will schedule a hearing to begin by the twentieth (20th) calendar day following the receipt of the written notice of appeal, unless otherwise agreed to by the complainant and the superintendent or for good cause.~~

~~c) Both parties will present the witnesses and testimony that the board determines is relevant and material.~~

~~2. Written decision~~

~~a) Unless otherwise agreed to by the complainant, the board will render a written decision within thirty (30) calendar days following the receipt of the notice of appeal and provide the complainant with a copy of the decision.~~

~~b) The decision will be provided in a language that the complainant can understand which may require language assistance for complainants with limited English proficiency.~~

~~c) The board's decision will include notice of the complainant's right to appeal to the Superintendent of Public Instruction, Equity and Civil Rights Office, P.O. Box 47200, 600 Washington Street S.E., Olympia, Washington 98504-7200.~~

~~d) The district will send a copy of the appeal decision to the OSPI.~~

~~C. Level Three - Complaint to the Superintendent of Public Instruction~~

~~1. Filing of complaint~~

~~a) If a complainant disagrees with the decision of the board of directors, or if the district fails to comply with this procedure, the complainant may file a complaint with OSPI.~~

REPEAL

~~b) A complaint must be received by OSPI on or before the twentieth (20th) calendar day following the date upon which the complainant received written notice of the board of directors' decision, unless OSPI grants an extension for good cause. Complaints may be submitted by mail, fax, electronic mail, or hand delivery.~~

~~c) A complaint must be in writing and include:~~

~~(i) A description of the specific acts, conditions or circumstances alleged to violate applicable anti-sexual harassment laws;~~

~~(ii) The name and contact information, including address, of the complainant;~~

~~(iii) The name and address of the district;~~

~~(iv) A copy of the district's complaint and appeal decision, if any; and~~

~~(v) A proposed resolution of the complaint or relief requested. If the allegations regard a specific student, the complaint must also include the name and address of the student, or in the case of a homeless child or youth, contact information.~~

~~2. Investigation, determination and corrective action~~

~~a) Upon receipt of a complaint, OSPI may initiate an investigation, which may include conducting an independent on-site review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal to the superintendent or board.~~

~~b) Following the investigation, OSPI will make an independent determination as to whether the district has failed to comply with RCW 28A.642.010 or WAC Chapter 392-190, and will issue a written decision to the complainant and the district that addresses each allegation in the complaint and any other non-compliance issues it has identified.~~

~~c) The written decision will include corrective actions deemed necessary to resolve the non-compliance and to include documentation the district must provide to demonstrate that corrective action has been completed.~~

~~d) All corrective actions will be completed within the timelines established by OSPI in the written decision unless OSPI grants an extension. If timely compliance is not achieved, OSPI may take action including but not limited to referring the district to appropriate state or federal agencies empowered to order compliance.~~

~~e) A complaint may be resolved at any time when, before the completion of the investigation, the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to assist in resolving a complaint.~~

REPEAL

D. Level Four - OSPI Administrative Hearing

A complainant or school district that desires to appeal the written decision of OSPI may file a written notice of appeal with OSPI within thirty (30) calendar days following receipt of OPSI's written decision. OSPI will conduct a formal administrative hearing in conformance with RCW 34.05.

VIII. Mediation

A. At any time during the complaint procedure the district may, at its own expense, offer mediation. The complainant and the district may agree to extend the complaint process deadlines in order to pursue mediation.

B. The purpose of mediation is to provide both the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator.

C. Mediation is voluntary and requires the mutual agreement of both parties.

D. Mediation may be terminated by either party at any time during the mediation process.

E. Mediation will not be used to deny or delay a complainant's right to utilize the complaint procedures.

F. Mediation will be conducted by a qualified and impartial mediator who will not:

1) Be an employee of the district; or

2) Have a personal or professional conflict of interest. A mediator is not considered an employee of the district solely because the individual serves as a mediator.

G. If the parties reach agreement through mediation, they will execute a legally binding agreement that sets forth the resolution and states that all discussions that occurred during the course of mediation remain confidential and may not be used as evidence in any subsequent complaint, due process hearing or civil proceeding. The agreement will be signed by the complainant and a district representative who has authority to bind the district.

IX. Training and Orientation

A. District orientation sessions for staff, students and regular volunteers will review the content of this procedure. Staff will be provided information on recognizing and preventing sexual harassment. Staff will also be fully informed of the formal and informal complaint processes and their roles and responsibilities under the district's policy and procedure.

B. Certificated staff will be reminded of their legal responsibility to report suspected child abuse, and how that responsibility may be implicated by some allegations of sexual harassment. Regular volunteers will also receive relevant information regarding their responsibilities as part of their orientation.

REPEAL

C. Students will be provided with age-appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies and procedures at student orientation sessions and on other appropriate occasions.

D. As part of the information on the recognition and prevention of sexual harassment staff, volunteers, students and parents will be informed that sexual harassment may include, but is not limited to:

1. Demands for sexual favors in exchange for preferential treatment or something of value;

2. Stating or implying that a person will lose something if the individual does not submit to a sexual request;

3. Penalizing a person for refusing to submit to a sexual advance, or providing a benefit to someone who does;

4. Making unwelcome, offensive or inappropriate sexually suggestive remarks comments, gestures, or jokes; or remarks of a sexual nature about a person's appearance, gender or conduct;

5. Using derogatory sexual terms for a person;

6. Standing too close, inappropriately touching, cornering or stalking a person; or

7. Displaying offensive or inappropriate sexual illustrations on school property.

X. Policy and Procedure Review

Periodically, the administrative policy committee will review and make recommendations to the full board on Policy and Procedure 5011, Sexual Harassment of District Staff Prohibited.

XI. Notice

Information about the district's sexual harassment policy will be conspicuously posted throughout each school building, available to each employee and reproduced in each staff, volunteer and parent handbook. In addition to the posting and reproduction of Policy and Procedure 5011, the district will provide annual notice to employees that complaints pursuant to this procedure may be filed at Vancouver Public Schools, 2901 Falk Road, Vancouver, Washington 98661.

APPROVED:

Jeff Snell Superintendent Vancouver Public Schools	Date

REPEAL

NEW Procedure – Sex Discrimination and Sex – Based Harassment of Staff Prohibited

I. Definitions

A. The district uses the definitions included in Grievance Procedure 3205.1 for sex discrimination, including sex-based harassment, of employees and applicants.

B. Examples of sex discrimination of employees or applicants include but are not limited to taking any of the following actions on the basis of sex stereotypes, sex characteristics, sexual orientation, gender identity, pregnancy, or related conditions:

1. Refusal to hire or promote;

2. Firing an employee or forcing them to quit or retire;

3. Sex-based harassment, such as "quid pro quo harassment" and "hostile environment harassment";

4. Other forms of sex-based harassment, such as specific offenses of sexual assault, dating violence, domestic violence, or stalking;

5. Providing unequal benefits or compensation; and

6. Other materially unequal terms, conditions, or privileges of employment.

II. Retaliation Prohibited

A. "Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process. Retaliation by the district, a student, or an employee or other person authorized by the district to provide any aid, benefit, or service under the district's education program or activity is prohibited.

B. When the district has information about conduct that reasonably may constitute retaliation, the district will respond promptly and effectively, inform the Title IX coordinator, and provide notice of the district's grievance process for addressing complaints of retaliation. Upon receiving a complaint alleging retaliation, the district will initiate its grievance procedures as described below or, as appropriate, an informal resolution process.

III. Grievance Procedure

A. The district uses Grievance Procedure 3205.1 as the process for receiving, investigating, and resolving reports or complaints of sex discrimination of an employee or applicant, including harassment based on a person's actual or perceived pregnancy status, and retaliation.

B. Complaints will be taken seriously and handled in the same manner as other sex discrimination and sex-based harassment complaints. Grievance Procedure 3205.1 is designed to provide for

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a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination or retaliation is found to have occurred, the district will take prompt and effective action to eliminate the discrimination or retaliation, prevent its reoccurrence and, as appropriate, remedy its effects.

C. Other forms of discrimination against employees or applicants that do not fall under this policy and procedure may be addressed under other district policies and procedures, such as Policy 5010, Nondiscrimination and Affirmative Action.

D. For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
Telephone: 360-313-1000
jeff.fish@vansd.org

IV. Staff Responsibilities, Training, and District Notice

The district uses Implementation Procedure 3205.2 to describe the following information, as applicable to this policy:

A. The roles, responsibilities, and training requirements for district staff;

B. That the district will provide information about this policy to staff, students, parents, and volunteers and will develop age-appropriate information and education regarding the identification, recognition, and prevention of sex-based harassment; and

C. Where and how district will provide notice about the policy.

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APPROVED:

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Jeff Snell, Superintendent Date
Vancouver Public Schools

(DRAFT 10-16-24)

NEW Procedure – Parental, Family, or Marital Status, and Pregnancy or Related Conditions of Staff

The superintendent establishes this procedure to provide protection and equal treatment of employees and applicants for employment who are pregnant, who have pregnancy-related conditions, and who are new parents. Nothing in this procedure should be construed to allow different treatment on the basis of sex concerning an employee's or applicant's current, potential, or past parental, family, or marital status, except as necessary to provide pregnancy or pregnancy-related accommodations. This procedure and its protections apply to all pregnant employees and applicants, regardless of gender identity or expression.

I. Key Definitions/Terms

The district uses the definitions included in Grievance Procedure 3205.1 for sex discrimination, including sex-based harassment, of employees and applicants. For the purpose of this procedure, the following additional definitions apply:

A. "Caretaking" means caring for and providing for the needs of a child.

B. "Familial status" refers to the configuration of one's family or one's role in a family.

C. "Marital status" refers to the state of being married, single, or divorced.

D. "Medically necessary" is a determination made by an employee's health care provider.

E. "Parental status" refers to the status of a person who, with respect to another person who is under the age of 18 (or a person who is 18 or older but incapable of self-care because of a mental or physical disability), is a biological, adoptive, foster, or stepparent; a legal custodian or guardian; acting in loco parentis; or actively seeking legal custody, guardianship, visitation, or adoption of such a person.

F. "Parental, family, and marital status discrimination" is different treatment based on one or more of those statuses. For example, treating an unmarried parent worse than a married parent, treating a married person of one sex or gender less favorably than a married person of another sex or gender based on stereotypes, or treating a person differently because of the sex or gender of their spouse.

G. "Pregnancy and pregnancy-related conditions" include but are not limited to:

1. Pregnancy, childbirth, false pregnancy, termination of pregnancy, miscarriage, lactation (expressing breast milk);

2. Medical conditions related to the above;

3. Recovery from above; and

4. Any other conditions in accordance with state and federal law.

H. "Pregnancy discrimination" includes treating a person who is pregnant or has a pregnancy-related condition less favorably than persons who are not pregnant, or failing to provide legally mandated leave or accommodations.

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I. "Reasonable modifications" mean individualized modifications to the district's policies, procedures, or practices that are comparable to the modifications offered for temporary medical conditions. A modification that causes an undue hardship to the district is not a reasonable modification.

J. "Undue hardship" is an action requiring significant difficulty or expense.

II. Parental, Family, or Marital Status

A. The district will not make any pre-employment inquiry as to the parental, family, or marital status of an applicant. For example, asking whether an applicant should be referred to as "Miss" or "Mrs."

B. The district may ask an applicant to self-identify their sex, but only if this question is asked of all applicants and if the response is not used as a basis for discrimination.

III. Pregnancy or Related Conditions

The district will treat pregnancy or related conditions in the same manner and under the same policies as temporary medical conditions for all job-related purposes, including commencement, duration, and extensions of leave; payment of disability income; accrual of seniority and any other benefit or service; reinstatement; and any fringe benefit offered to employees.

IV. Reasonable Modifications

A. Modifications that are presumed reasonable

The district will provide the following reasonable modifications upon notice from the employee. The employee does not need to provide a note from a healthcare provider.

1. Providing more frequent, longer, or flexible restroom breaks;
2. Modifying a no food or drink policy;
3. Allowing breaks, as needed, to eat and drink;
4. Carrying water and drinking, as needed;
5. Providing seating and allowing more frequent sitting or standing, as needed; or
6. Limits to lifting of seventeen pounds or less.

B. Process for requesting other reasonable modifications

1. The district will make other reasonable modifications to its policies, procedures, and practices as necessary to prevent sex discrimination and support equal access to the district's education program or activity.
2. Each reasonable modification will be based on the employee's individualized needs.
3. The district will consult with the employee in determining what modifications are required.
4. The employee has the discretion to accept or decline each reasonable modification offered

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by the district. If the employee accepts a modification, the district will implement it.

5. A modification that would cause an undue hardship is not a reasonable modification.

C. Reasonable modifications may include, but are not limited to:

1. Providing reasonable break time to express breast milk or breastfeed for two years after childbirth;

2. Allowing the person to sit or stand;

3. Allowing the person or to carry or keep water nearby;

4. Intermittent absences to attend medical appointments;

5. Scheduling flexibility for prenatal visits;

6. Acquiring or modifying equipment, devices, or an employee's workstation;

7. Job restructuring, part-time or modified work schedules, or reassignment to a vacant position;

8. Suspending essential job functions if the modification sought is temporary, the essential job function can be performed in the near future, and the inability to perform the essential functions can be reasonably accommodated and will not cause an undue hardship;

9. Providing for a temporary transfer to a less strenuous or less hazardous position;

10. Providing assistance with manual labor and limits on lifting;

11. Accommodations to protect the health and safety of the employee and their pregnancy (such as allowing the employee to maintain a safe distance from hazardous substances); and

12. Elevator access.

D. The district does not have to create additional employment that it would not otherwise have created, unless the district does or would do so for other employees who need accommodation for a temporary medical condition. Further, the district is not required to discharge another employee, transfer an employee with more seniority, or promote an employee who is not qualified to perform the job, unless the employer does or would do so to accommodate other employees who need accommodation for a temporary medical condition.

E. The district is not required to request medical documentation in instances when the person's limitation or need for a modification is obvious. However, the district may request medical documentation to support a modification request under reasonable circumstances. The documentation requested must be the minimum sufficient to confirm the limitation. The district will keep all medical records confidential and maintained in separate medical files.

F. When medical documentation is provided, the district will consider the documentation, recommendations of the employee's medical provider, and information on pregnancy accommodation from the Department of Labor and Industries.

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V. Voluntary leaves of absence and intermittent absences

A. The district will allow leaves of absence for pregnancy and pregnancy-related conditions. Information on employment leave can be found in Policy 5404, Family, Medical, and Maternity Leave.

B. In the case of an employee who does not qualify for leave under other district leave policies, the district will treat pregnancy or related conditions as a justification for a voluntary leave of absence without pay for a reasonable period of time, at the conclusion of which the employee will be reinstated to the status held when the leave began or to a comparable position, without decrease in rate of compensation, loss of promotional opportunities, or loss of any other right or privilege of employment.

VI. Lactation space

A. The district will provide employees access to a lactation space, which must be a space other than a bathroom.

B. The lactation space must be clean, shielded from view, free from intrusion from others, and may be used by an employee for expressing breast milk or breastfeeding as needed.

VII. Discrimination and Retaliation Prohibited

A. The district prohibits discrimination against employees because they are pregnant or have asked for modification or accommodation. Specifically, the district will not:

1. Retaliate or punish an employee who has requested modifications;

2. Deny employment opportunities because an employee has been granted modifications;

3. Make an employee take time off instead of allowing a reasonable modification; or

4. Deny an employee reasonable modifications.

B. "Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process. Retaliation by the district, a student, or an employee or other person authorized by the district to provide any aid, benefit, or service under the district's education program or activity is prohibited.

C. When the district has information about conduct that reasonably may constitute retaliation, the district will respond promptly and effectively, inform the Title IX coordinator, and provide notice of the district's grievance process for addressing complaints of retaliation. Upon receiving a complaint alleging retaliation, the district will initiate its grievance procedures as described below or, as appropriate, an informal resolution process.

VIII. Grievance Procedure

A. The district uses Grievance Procedure 3205.1 as the process for receiving, investigating, and resolving reports or complaints of sex discrimination, including harassment based on a person's actual or perceived pregnancy status, and retaliation.

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B. Complaints will be taken seriously and handled in the same manner as other sex discrimination and sex-based harassment complaints. Grievance Procedure 3205.1 is designed to provide for a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination or retaliation is found to have occurred, the district will take prompt and effective action to eliminate the discrimination or retaliation, prevent its reoccurrence and, as appropriate, remedy its effects.

C. Other forms of discrimination against employees or applicants that do not fall under this policy and procedure may be addressed under other district policies and procedures, such as Policy 5010, Nondiscrimination and Affirmative Action.

D. For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:

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2901 Falk Rd.
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APPROVED:

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Jeff Snell, Superintendent
Vancouver Public Schools

Date

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